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Virginia House of Delegates Floor Session, Reconvened Session, Wednesday, April 22, 2026

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[00:11:35] The House will come to order. Members, please take your seats. Sergeant-at-Arms. The House is now in session. All persons not entitled to the privileges of the floor, please retire to the gallery.

[00:11:53] The members will rise and be led in prayer by the Honorable J.J. Singh, the Delegate from Loughton, and remain standing for the Pledge of Allegiance of the Flag of the United States of America, which will be led by the Delegate from Alexandria, Delegate Herring. Let us pray. Holy Creator, Waiguru, on this reconvened session, we ask you to bless and guide all of us, the House, the Senate, the Governor, and her administration, the staff here at the Capitol, and the great citizens of our Commonwealth.

[00:12:22] Let us remember the spirit in which we all came to this assembly, seva, selfless service. May we work together today and every day in good faith to do the people's work. From the opening prayer of Sikhism, universal creator, truth is your name.

[00:12:47] You are the doer of all, without fear, without enmity, and timeless. By the grace of God, lead us from the shadows into the light. Thank you. I pledge allegiance to the flag of the United States of America and to the republic for which stands, one nation, under God, indivisible, with liberty and justice for all.

[00:13:24] The House will come to order. I guess we forgot. The clerk will report the result of the special election that occurred in the 98th House of Delegates District. Members, please be advised that pursuant

to Article IV, Section 7 of the Constitution of Virginia, providing that the House of Delegates shall judge of the election qualification returns of its members, and as the Director of the Speaker of the House, I am pleased to report the following.

[00:13:53] In the special election called by the Speaker to fill the vacancy in the 98th House of Delegates District which occurred on Tuesday, March 17, 2026, it has been determined that C. Andrew Rice received a majority of the votes cast and was duly sworn into office by me on Thursday, March 26, 2026. Welcome, Delegate Rice. You have great timing. The members will answer the roll call

[00:14:33] by indicating their presence on the electronic voting board. Chuck will close the roll. Mr. Speaker, a quorum is present.

[00:14:50] Pursuant to House Rule 3, I've examined and approved the General House of Delegates for March 14, 2026. Motions and resolutions of the Rule 39 pursuant to the provisions of Rule 40 are now in order. Does the clerk have any announcements or communications? Yes, sir, Mr. Speaker. First, communication from the speaker to the clerk, March 31, 2026.

[00:15:08] I've made the following committee assignments effective today. Delegate Rice has appointed the Committee on Transportation and the Committee on County, Cities, and Towns. Sincerely, Don Scott, Speaker of the House. In addition, remind the members on this reconvened session that the governor's vetoes and recommendations are printed in the calendar as well as available on IHOD to the members here in the chamber as well as the legislative information system to the members as well and to the public at large.

[00:15:33] Enrolled bills are available electronically on both too. In addition, I email you previously the House procedures pursuant to House rules and custom approved by the Speaker that govern how legislation will be handled today. I will explain at the beginning of each section, just set the table, if you will, but hopefully everyone's looked through all those materials.

[00:15:54] In addition, Mr. Speaker, members of the House, the commending memorial resolution, reminder, all agreed to commending memorial resolutions from the regular session have been prepared and presentation copies and framed if requests have been placed in your GOB office. So kindly go and pick those up so you can distribute those to the recipients.

[00:16:12] And with that, pursuant to House Rule 40, the Speaker request it. Use your request to speak button for the agenda items listed up on the voting board. Delegate from Fairfax, Delegate Watts. Thank you, Mr. Speaker. Mr. Speaker, I rise for a motion. Delegate has the floor. Thank you.

[00:16:28] Mr. Speaker, I move that when the House adjourns today, it adjourns in the honor and memory of Dr. Serena Wanzer Fairfax. Speaking to the motion. Delegate has the floor. When the news of Dr. Fairfax's tragic murder struck, I believe I speak for all of us.

[00:16:50] We were each in profound shock. No, no, no, not possible. The children, virtually every account that followed included strong guidance for getting help to prevent such pointless loss of life.

[00:17:10] Many emphasized the extreme vulnerability of anyone struggling within domestic violence. Gradually, the beautiful soul of Serena threaded through later accounts.

[00:17:28] A devoted mother, a trusted, caring health professional, a person always there to do what was expected of her with grace and concern for others. With the passage of time, her beloved family may come

to us to fully commemorate her beautiful life in a way that will pass on her strength in meaningful action.

[00:17:59] At this moment, however, I want to offer these words from our governor to contemplate when we will rise to stand in silence in deep respect and memory of her honorable life.

[00:18:17] I am praying for the Fairfax children, and I ask my fellow Virginians to hold them in their hearts and prayers. The murder of Dr. Serena Fairfax is an apparent murder-suicide, is a horrific tragedy.

[00:18:38] Dr. Fairfax was a devoted mother, beloved dentist in the Fairfax County community, and an engaged supporter of her alma mater, Virginia Commonwealth University. My prayers are with the Wanzer and Fairfax families as they mourn their own loss, endeavor to make sense of the tragedy, and comfort the Fairfax children.

[00:19:05] Mr. Speaker, I move that when the House adjourns, it adjourns in honor and memory of Dr. Fairfax. The delegate from Fairfax, Delegate Watts, moves that when the House adjourned today, it do so in honor and memory of Serena Wanzer Fairfax.

[00:19:22] All those in favor shall rise. The motion is agreed to. The delegate from Winchester, Delegate Wiley.

[00:19:40] Thank you, Mr. Speaker. I rise for a purpose of an announcement. Delegate has the floor. Thank you, Mr. Speaker. This is on a lighter note, of course. Whether you're a Republican or Democrat, I think we can all agree that Virginia Public Access Project, or VPAP, is a tremendous resource that we are lucky to have here in the Commonwealth.

[00:19:59] VPAP makes staying informed about Virginia politics easy and accessible to all Virginians, from the political insider to the political novice. VPAP's annual luncheon, Lighten Up, It's Just Politics, is quickly approaching on Tuesday, May 5th at noon at the Richmond Marriott.

[00:20:15] This year, the politician, comedian, keynote speakers are none other than myself and Governor Abigail Spanberger. Wow. This event is full of political hijinks with comedy sketches, blooper reels, and plenty of jokes.

[00:20:33] It's time for us to come together to laugh at ourselves and support VPAP. We'd love to have a good showing of legislators this year to support VPAP's important work. This luncheon is a big part of VPAP's annual fundraising revenue. And while VPAP invites legislators to attend the luncheon at no cost, please do support VPAP by making a donation and joining VPAP's Sunshine Caucus.

[00:20:54] Check your inboxes for an email this afternoon on how to reserve your spot. And don't hesitate to reach out to the VPAP team if you have any questions. Thank you, Mr. Speaker. Man, he's doing hijinks with the governor, man. You big time now. The delegate from Dinwiddie, Delegate Pope Adams.

[00:21:09] Thank you, Mr. Speaker. rise for the purpose of an introduction. Delegate has the floor. Thank you, Mr. Speaker. Today in the gallery are the coaches and players of the Petersburg High School varsity boys basketball team. I ask them to please stand. Mr. Speaker, on the evening of March 14th, while we were still gathered in this chamber, these young men were inside the Segal Center making history. After

[00:21:42] heartbreaking runner-up finishes in 1985, 89, 2010, 2012, and 2022, this team ended the 52-year drought and claimed the Virginia High School League Class III State Championship, defeating Lake Taylor High School with a final score of 56-35. For the first time since the 1974 team led by legendary Moses Malone, Petersburg basketball was back where it belonged, on top. Their success is

[00:22:19] a testament to the leadership of their head coach, himself a Petersburg high school alumnus, and to the discipline, grit, and determination of every young man on this team. Their championship has brought immense pride to the city of Petersburg and inspired an entire community who have waited over a generation for this moment.

[00:22:40] They represent the very best of teamwork, perseverance, and hometown excellence. So, Mr. Speaker, please join me in giving the Petersburg Crimson Wave a warm house welcome. Congratulations and welcome to the Capitol today.

[00:23:08] The delegate from Richmond County, Delegate Kent. Thank you, Mr. Speaker. Mr. Speaker, I rise today for the purpose of an introduction as well as the purpose of a motion. The delegate has the floor. Thank you, Mr. Speaker. I rise today to recognize a hero and his family.

[00:23:26] Would the family of Chief Master Sergeant John Patrick Armstrong please rise? Chief Master Sergeant Armstrong was honorably served our nation in the United States Air Force for more than 22 years.

[00:23:43] Over the course of his decorated and distinguished career, he deployed multiple times to Iraq, Afghanistan, supporting Operation Enduring Freedom and Iraqi Freedom. He answered the call to serve on some of our nation's most dangerous and challenging moments.

[00:24:00] Through his service, he exemplified the highest standards of leadership, dedication, and integrity. Achieving the rank of Chief Master Sergeant reflects not only his professional excellence, but also the trust and respect he earned for those who he led and who he served alongside.

[00:24:17] In addition to his amazing military accomplishments, Johnny was a devoted husband and proud father and deeply valued member of our community. He had just returned to King George, a place he loved and was proud to call home.

[00:24:34] His life is a testament to service, not only to his country, but to his family and community. Chief Master Sergeant Armstrong is remembered for always putting everyone else first. He put his country first. He put his family first. And today, Mr. Speaker, in this moment, we are grateful to put him first, to honor his service, his fight, his defense of our freedom.

[00:24:59] But equally, we are grateful for the man that touched the lives of so many. Yesterday would have been Chief Master Sergeant's 43rd birthday. And to share some of his words in the chamber today, He said before he passed, do not be sad or weary.

[00:25:19] I am still able to finish the day with a smile and a grateful heart. I am truly still the luckiest man alive. God is our strength in weary times, and I pray God blesses you this wonderful season and opens all of our eyes of what is truly important in this world.

[00:25:38] In this room, in this chamber, Mr. Speaker, we often talk about legacy, whether through legislation or regulation, but there is a greater impact than pieces of paper, and that is evident by the impact that Chief Master Armstrong had on others. We are grateful for his service to this country and our commonwealth, and I hope that it will be a pleasure of this body, and it is an honor of this body, to welcome the Armstrong family. Would the House

[00:26:10] please give them a warm house welcome. Mr. Speaker, I also have a motion. The delegate has the floor.

[00:26:33] Mr. Speaker, I would ask that when the house adjourned today, it do so in the honor of Chief Master Sergeant John Patrick Armstrong. The delegate from Richmond County, Delegate Kent, moves that when the house adjourned today, it do so in the honor and memory of Chief Master Sergeant John Patrick Armstrong. All those in favor of that motion shall rise. Motion is agreed to.

[00:27:05] Delegate from Virginia Beach, Delegate Fagans.

[00:27:23] Mr. Speaker, I rise for an introduction. The delegate has the floor. Thank you, Mr. Speaker. In the gallery today, we have the Princess Anne High School Cavaliers girls basketball team from Virginia Beach located in House District 97. If they are in the gallery, I would ask for them to please stand.

[00:27:41] Thank you. Mr. Speaker, you are witnessing a dynasty like no other. The team completed a perfect 28-0 season capturing the Class 5 title. But that's not all. This makes their not one, not two, not three, but fourth straight title and their 16th state title overall.

[00:28:05] Under the strong leadership of an incredible coaching staff that has set the standard for excellence, not just in the Commonwealth, but across the nation, every student athlete has also completed and maintained a 3.0 or higher grade point average, proving their success extends beyond the court.

[00:28:23] This team also includes a VHSL Class 5 Player of the Year who made history earning the honor as a freshman, a sophomore, and a junior, and also while becoming a three-time state champion, and also earning a gold medal on their under-16 team.

[00:28:42] This Princess Anne girls basketball team is something to be proud of, not just in Virginia Beach, but across the Commonwealth in this nation, and I would ask the body to please give them a warm house welcome. Congratulations, and welcome to the Capitol.

[00:29:14] The Delegate from RICO, Delegate McQuinn. Thank you, Mr. Speaker. Mr. Speaker, I rise for two introductions. The Delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, in the gallery today, and I don't see them, but I'm going to introduce them anyway. And I rise for this introduction to introduce the outstanding students from John Roth Middle School who have joined us today to observe the legislative process here at the Virginia General Assembly.

[00:29:43] These young scholars represent the bright future of the Commonwealth of Virginia. Their visit provides them with the opportunity to see firsthand how our laws are debated, discussed, and enacted. Experiences like this help inspire the next generation of leaders, public servants, educators, and engaged citizens.

[00:30:01] So on behalf of the 81st District and all of those who love these young people and this house, I ask that you would join me in just welcoming the students, their teachers, and chaperones with a warm welcome to the Capitol, Mr. Speaker, from John Roth, again, Middle School.

[00:30:19] Welcome to the Capitol. Delegate from Henrico, Delegate McQueen. Mr. Speaker, the second introduction. Thank you, Mr. Speaker. Mr. Speaker, it is my honor today, and I'm going to ask that they would stand, the Verina High School Blue Devils football team from Henrico County.

[00:30:41] It is my honor to recognize them today. This outstanding team recently captured the Virginia High School League Class 4 State Championship, finishing their season with an impressive victory and bringing the tremendous pride to their school and their community, our county and the Commonwealth.

[00:31:00] This remarkable achievement secured the program's second state title in five years and capped off an impressive season for these talented young athletes. The team's success reflects countless hours of dedication, teamwork, and discipline demonstrated by the players, the coaches, the faculty, and supportive families who stand behind them.

[00:31:22] Their commitment to excellence both on and off the field has brought great pride to Henrico County and the entire Commonwealth. Today we celebrate these champions for their perseverance, their sportsmanship, and the example they set for students across Virginia.

[00:31:39] Speaker, this is what champions look like. And so please join me at this time in congratulating the Verona Blue Devils football team, their coaches and supporters on an extraordinary season and a well-deserved state championship. Please join me. Congratulations and welcome to the

[00:32:11] Capitol today. Delegate from Fairfax, Delegate Tran. Thank you, Mr. Speaker. I rise for an introduction. Thank you, Mr. Speaker. Members of the House, joining us in the gallery today are members of the Virginia Professional Firefighters. The Virginia Professional Firefighters represent more than 10,000 members of the International Association of Firefighters

[00:32:47] across the Commonwealth. These emergency response professionals provide fire protection and and emergency medical services to more than 80% of Virginians. Their rank includes firefighters, fire officers, fire inspectors, fire investigators, hazardous materials specialists, emergency medical technicians, paramedics, training instructors, water rescue specialists, and 911 dispatchers.

[00:33:10] And they truly represent the best of our public servants. And Mr. Speaker, I'm especially proud to recognize members of Local 2068 who serve Fairfax County. I ask our House members to please join me in giving the Virginia Professional Firefighters a warm house welcome. Welcome.

[00:33:39] Welcome to the Capitol today. The Delegate from Dinwiddie, Delegate Pope Adams. Thank you, Mr. Speaker. I rise for the purpose of an introduction. The Delegate has the floor. Thank you. Today in the gallery is an outstanding group of students from Surry County High School. I ask them to please stand.

[00:33:59] Mr. Speaker, this delegation represents one half of the class of 2026. While they're here with us, their other classmates are being introduced in the Senate chamber, giving every senior the opportunity to experience both bodies of Virginia's General Assembly and witness their state government in action.

[00:34:17] I also want to recognize their government teacher, who due to health issues over the past months, was unable to organize this annual trip during regular session. But after a full recovery, he remained determined to ensure that his students would still have the opportunity to visit their capital.

[00:34:35] And today, he celebrates his 20th year of leading this tradition. Mr. Speaker, these seniors stand at the threshold of new beginnings, preparing for college, careers, military service, and maybe even elected office.

[00:34:51] Surry County has a proud history and a bright future, and these young men and women embody that promise. So please join me in giving a warm house welcome to the Surrey County High School Class of 2026. Welcome, welcome to the Capitol today.

[00:35:18] Clerk will announce the next order of business. Speaker, the second portion of the morning hour is not applicable given today's calendar. Clerk will announce the next order of business. The third

portion of the morning hour is our announcement of member requests for legislation go by for the day, and if any subsequent motion to effectuate that by the majority leader.

[00:35:34] There are 21 in the category of house bills with recommendations by the governor. The bills that would be going by for the day are as follows. House Bill 5, House Bill 26, House Bill 111, House Bill 217, House Bill 246, House Bill 290, House Bill 449, House Bill 561, House Bill 639, House Bill 642,

[00:36:04] House Bill 650, House Bill 675, House Bill 768, House Bill 925, House Bill 972, House Bill 1173, House Bill 1222, House Bill 1263, House Bill 1385, House Bill 1392.

[00:36:25] And rounding out the buy for the day request is House Bill 1482. Doggett from Alexandria. Doggett, hearing. Mr. Speaker, we have one more to add to that, and that's House Bill 483 on page 19. 483?

[00:36:44] Yes. Just the one? Just one. And one additional one. So not more. So 22 bills with the addition of that last one. Those who are requested to go by for the day. Declan Alexander, Delegate Herring. Mr. Speaker, I move that those governor's recommendations go by for the day.

[00:37:01] Declan Alexander moves that the governor's recommendations go by for the day. As many as in favor, the motion will say aye. All those opposed, no. Those that were announced by the clerk, go by for the day. Clerk will announce the next. And the fourth and final portion of the morning hour is reserved for member requests. For points of person privilege, kindly use your request to speak button to get into the queue.

[00:37:19] Clerk will announce calendar. Calendar for today, this reconvened 2026 session on Wednesday, April 22nd, 2026. First category of bills, page one of the printed calendar. House bills vetoed by the governor.

[00:37:36] Remind the members that if a member wants or wishes to contest the veto, the proper motion shall the governor's veto be overwritten. That takes a two-thirds vote of those requested. However, if the member does not desire to contest the governor's veto, he or she should state that desire.

[00:37:57] Mr. Speaker, therefore, continuing, first bill in this category of House bills vetoed by the governor is three. Mr. Speaker, parliamentary inquiry. The delegate has the floor. Mr. Speaker, is it permissible that we can take some of the bills in a block that the members agree to accept from both sides of the aisle?

[00:38:16] We're on vetoes. We're still on vetoes? Vetoes, yeah. I apologize, Mr. Speaker. So page one on the category of House Bills Vetoed, we have House Bill 86 relating to mattress stewardship program established. The governor's veto is before the body. Continuing with the next bill in this category, House Bill 637, related to possession of residue of a controlled substance penalties, exceptions, the governor's veto to House Bill 637 is now before you.

[00:38:47] And finally, in this last bill, in this category, House Bill 1288, this legislation relates to enforcement of vehicle liens, property value. This legislation, governor's veto is now before you. And accordingly, Mr. Speaker, continuing with the calendar, we come to a new category.

[00:39:06] that is on page three, 106 bills sent down by her excellency to the House. So House bills are recognized by the Governor. This is the new category before us. Dr. Alexandra, Delegate Herring.

[00:39:22] Thank you, Mr. Speaker. I move that we accept the Governor's recommendations on the following block of bills: HB 308, HB HB391, HB395, HB455, HB518, HB931, HB952, HB1007, HB1043,

HB1222, and HB1270.

[00:40:13] The House will be at ease.

[00:40:34] From Alexander Delegate Herring.

[00:41:17] Mr. Speaker, I move that we accept the governor's recommendations in a block, except for House Bill 1222, which is now out of the block. Okay, and you want to accept these amendments. I want to make sure I'm clear. These are not passed by for the day to accept.

[00:41:34] These are accepted. Okay. Thank you, Mr. Speaker. This is a recorded vote. Madam Clerk, open the roll. Let's do it. That's okay. It's too late now.

[00:42:08] This is not at ease.

[00:42:29] Why they got us at ease? These are not by for the day.

[00:43:19] Shall the governor's amendments be agreed to? This is the 12 bills in the uncontested block. 10 bill, sorry. Close the roll. Ayes, 99, no, 0. Ayes, 99, no, 0. The amendments are agreed to.

[00:43:48] Continue with the calendar. Mr. Speaker, continuing with the calendar, so we're in the category of house bills with recommendations. We've taken a number of them by. We just adopted a block. Now we'll just go back and beginning on page three of the calendar, begin working through the various recommendations to be considered. I've given everyone all of the information before so I'm not going to read all that but if you have a question you know come ask. We're on page 3. House Bill 2 is now before you. It relates to reducing heating related costs of living for low-income residents by requiring certain

[00:44:27] electric utilities provide energy efficiency upgrades. The governor's recommendation is available to the members, to the public, and is now before you. Thank you, Mr. Speaker. HB2 simply encourages utility companies to expand low-income energy efficiency programs that they already operate.

[00:44:43] It does so by setting a performance target for APCO and Dominion to deliver upgrades for their customers that are stuck on the most expensive home heating technology and instead switch them to efficient heat pumps.

[00:45:00] The governor's amendment is wholly technical in nature, and I move the governor's amendment and ask that the members vote yes. Shall the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll.

[00:45:23] Ayes. 64, noes. 35. Ayes. 64, noes. 35. The governor's recommendation is agreed to. Over on page 3, next bill before you is House Bill 27, relating to overtime for certain employees, domestic workers.

[00:45:39] Governor's recommendation is available to the members here in the chamber, to the public at large, and is now before the bottom. Doug from Prince William, Doug at Henson. Thank you, Mr. Speaker. Mr. Speaker, House Bill 27 provides overtime protections for domestic workers, including nannies, house cleaners, caregivers. Mr. Speaker, the governor's amendment places a reenactment clause on House Bill 27 to be reconsidered in the 2027 General Assembly.

[00:46:01] With that, Mr. Speaker, I move the governor's amendment and ask that we accept the governor's amendment. Shall the governor's amendment be agreed to? Close the roll.

[00:46:20] Ayes 62, noes 36. Ayes 62, noes 36. The governor's amendment is agreed to. House Bill, top of page 5, we come next to House Bill 41, which is legislation relating to elections, administration, procedure for removal of electoral board members and general registrars.

[00:46:42] Governor's recommendation is available to the members, to the public, and is now ready for your consideration. Doug from Fairfax, Delegate Simon. Mr. Speaker, members of the House, House Bill 41, as you'll recall, was the bill that streamlines the procedure for removing certain general registrars and Board of Elections members.

[00:47:00] The governor's amendment makes it clear that although the findings of the State Board of Elections are not appealable, that doesn't mean that you can't get judicial review under the Administrative Process Act. It's a technical amendment, and I hope it'll be the pleasure of the body to accept the governor's amendment. Shall the bill be amended in accordance with the recommendation of the governor?

[00:47:20] Ayes 69, noes 30. Ayes 69, noes 30. The governor's recommendation is agreed to. Next up we come to House Bill 61.

[00:47:38] House Bill 61 relates to the Department of Small Business Supplier Diversity Small Swam Business Procurement Enhancement Program established. Report the governor's recommendation available to the public, to the members, and is now ready for your consideration. Delegate from Hampton, Delegate Ward. Thank you, Mr. Speaker. Mr. Speaker, House Bill 61 seeks to codify and expand upon Executive Order 34-35, which was issued back in 2019, along with Executive Order 20.

[00:48:03] The purpose of these executive orders was to improve procurement opportunities for small women, minority-owned businesses across the Commonwealth. Mr. Speaker, I move that we sever Amendment 3. Then, Mr. Speaker, Amendments 1 and 2 are primarily clarifying in nature, and they add nothing substantive to the bill.

[00:48:26] Mr. Speaker, I move that we adopt the governor's recommendation, and I ask the members to vote yes. I understand. As to Amendments 1 and 2, you ask us to vote yes. You're severing three, and you want a separate vote on Amendment 3. Is that correct?

[00:48:41] That's correct. Okay. What about the Fourth Amendment? Well, according to that, that is the fourth. The fourth amendment is the one that we really want to pass by. House will be at ease.

[00:48:53] House will come to order.

[00:52:47] Delegate from Hampton, Delegate Ward. Yes, Mr. Speaker, I ask that those amendments, the governor's recommendation, we ask the members to vote yes. On amendments number? One, two, and three.

[00:53:05] The delegate from Scott County, Delegate Kilburg. Mr. Speaker, just point of order. So we're voting on amendments one, two, and four. One, two, and three. One, two, and three. Okay. And then we'll vote on, then we'll do something else with number four.

[00:53:21] Thank you, Mr. Speaker. Thank you. Shall the governor's recommendations as to House Bill 61, amendments one, two, and three be amended in accordance with the recommendation of the governor? Kirk, we'll close the row.

[00:53:43] Ayes, 64, nos, 36. Ayes, 64, nos, 36. The governor's amendments as to 1, 2, and 3 on HB 61 are agreed to. The delegate from Hampton, Delegate Ward. Thank you, Mr. Speaker. Mr. Speaker, the governor's Fourth Amendment calls for yet another disparity study before the bill can be reenacted.

[00:54:03] However, Mr. Speaker, this Commonwealth has already conducted multiple disparity studies in 2004, 2010, 2020, and most recently in 2025. And they all reach the same conclusion. There are significant disparities in procurement for small women-owned businesses.

[00:54:23] And at some point, Mr. Speaker, we've got to stop studying and start moving forward. So, Mr. Speaker, I ask, I move that we pass this fourth amendment by. Without a recorded vote, shall amendment number four be passed by for the day?

[00:54:40] All those in favor, say aye. All those opposed, no. Amendment four is passed by for the day. The House will be at ease.

[00:55:32] Mr. Clerk. So we're. We already passed by. Mr. Speaker, therefore, continuing with the calendar, over on page six, we come next, House Bill's recommendation by the governor, House Bill 77.

[00:55:48] House Bill 77 is legislation related to enforcement of federal traffic infractions by state and local law enforcement officers planning District 8. Governor's recommendation, the member nature substitute is available online, available to the members, and is now awaiting your consideration. Delegate from Fairfax, Delegate Krizak.

[00:56:04] Thank you, Mr. Speaker. House Bill 77, if you remember, authorizes local and state police to enforce federal traffic laws on the George Washington Parkway. And what the governor's recommendation does is it adds an authorization for the Virginia State Police and Fairfax County Police Department to enter into an agreement to install and operate speed cameras on George Washington Parkway.

[00:56:25] During the interim, we heard from citizens' associations living adjacent to the parkway requesting this change be made to further address the massive speeding that's happening there. Mr. Speaker, I move adoption of the Governor's recommendation. Shall the bill be amended and, of course, with the recommendation of the Governor?

[00:56:47] Clerk will close the roll. Ayes, 64, noes, 35. Ayes, 64, noes, 35. The Governor's recommendation is agreed to. Bottom of page 6, we come to House Bill 95, which is an act relating to the Virginia Residential Landlord and Tenant Act.

[00:57:06] Landlord remedies noncompliance with rental agreement payment plan. The Governor's recommendation is available to the public, to the members. It is now before you. House of Bill at ease.

[00:59:13] House of Criminal Order, Delegate from Alexandria, Delegate McPike.

[01:00:07] Thank you, Mr. Speaker. House Bill 95 is a bill by my predecessor, Senator Elizabeth Bennett-Parker, which would allow certain renters who owe one month or less in back rent to pay that balance through an installment plan in 2024. One-third of evictions in Virginia were for less than one month's of rent. Mr. Speaker, I move that we sever amendments 1, 5, 6, and 10.

[01:00:26] We will sever. It's been properly moved to sever 1, 5, 6, and 10 of the 12 amendments. All those in favor say aye. All those opposed, no.

[01:00:42] What do you want to do with them? With the non-severed amendments? 1, 5, 6, and 10. Yeah, 1, 5, 6, I move that we pass by the severed amendments for the day. The delegate from Alexander, the delegate from Pipe, moves that we pass by 1, 5, 6, and 10. All those in favor say aye. All those opposed, no.

[01:00:57] 1, 5, 6, and 10 amendments of House Bill 95 are now passed by for the day. The delegate from Alexander, the delegate from Pipe. Thank you, Mr. Speaker. The remaining amendments align the bill with the expansion of the pay or quit period from 5 to 14 days, delay enactment to July 1, 2027, and require DHCD to post a sample payment plan on their website.

[01:01:15] Regarding these amendments, I move that we adopt the governor's recommendation, and I ask the members vote yes. Shall the governor's recommendations as to House Bill 95, amendments 2, 3, 4, 7, 8, 9, 11, and 12 be amended in accordance with the recommendation of the governor?

[01:01:46] Clerk will open the row.

[01:02:01] The voting board? Okay, yeah. Clerk will close the row.

[01:02:23] Ayes 64, nos 36. Ayes 64, nos 36. The governor's recommendations are agreed to as to all of the amendments except for 1, 5, 6, and 10. Continuing with calendar page 7, we come to House Bill 101, which is an act relating to application for concealed handgun permits.

[01:02:47] Governor's recommendation available to the members here in the chamber, to the public at large, and it's now before you. From Giles County, Delegate Ballot. Thank you, Mr. Speaker. Mr. Speaker, members of the House, the governor's recommendation on House Bill 101 clarifies that CHP applications can be submitted electronically as well as via hard copy.

[01:03:05] I move adoption of the recommendation and ask that the House agree to that motion by voting yes. Shall the bill be amended and what's with the recommendation of the Governor? Clerk will close the roll.

[01:03:23] Ayes, 99, noes, 0. Ayes, 99, noes, 0. The Governor's recommendation is agreed to. Over on page 8, bill before you. Next bill before you is House Bill 112.

[01:03:45] This legislation relates to the Department of Wildlife Resources, premature separation and hybridization of mammalian wildlife prohibited. Exceptions, Governor's recommendations available to the public, to the members, now before the body. Doug from Albemarle County, Delegate Lauffer. Thank you, Mr. Speaker.

[01:04:00] HB 112 is a bill with a very narrow focus on protecting exotic mammals in captivity from premature separation, as well as makes it unlawful to intentionally and for commercial purposes propagate mammalian wildlife of different species, also known as hybridization.

[01:04:17] The governor's recommendations are technical definitions. I move the governor's recommendations and ask the members to vote yes. Shall the bill be amended in accordance with the recommendation of the governor?

[01:04:38] Ayes 67, noes 33. Ayes 67, noes 33. The governor's recommendation is agreed to. Top of page 9 of the printer calendar, we come to House Bill 172, legislation relating to criminal cases, request for a jury to ascertain punishment.

[01:04:53] When the governor's recommendation is available to the public, to the members, it is now before you. Delegate from Chesterfield, Delegate Maida. Thank you, Mr. Speaker. HB 172 allows an accused to withdraw a request for jury sentencing up to the time of the sentencing proceeding.

[01:05:09] The governor recommends that HB 172 be reenacted by the 2027 session of the General Assembly. I move the adoption of the recommendation, and I would like the motion agreed to by the members by voting yes. Shall the bill be amended in accordance with the recommendation of the governor?

[01:05:35] Close the roll. Ayes 63, noes 36. Ayes 63, noes 36. The governor's recommendation is agreed to. Next up, we come to House Bill 196, directing the Department of Housing and Community Development in collaboration with the Community Housing Development Authority to create a two-year pilot program that would provide loan origination and servicing activities for mixed-income housing report.

[01:05:57] Governor's recommendation is available to the public, to the members here, and is now before the body. That up from Prince William, Doug and Thomas. Thank you, Mr. Speaker. Mr. Speaker, House Bill 196, as enrolled, creates a revolving loan fund for the creation of more affordable housing across the Commonwealth. Governor's recommendation moves the funding source out of the housing trust fund and just into the general part of the budget, which is fine.

[01:06:16] And so I move the governor's recommendation and ask that the members vote yes. Shall the bill be amended with the recommendation of the governor? Terrible, close the row.

[01:06:33] Ayes, 86, no's 14. Ayes, 86, no's 14. The governor's recommendation is agreed to. Next up, House Bill 215 at the bottom of page 9. This legislation relates to voter registration, list maintenance, third-party data exchanges, approval by the State Board of Elections.

[01:06:52] The governor's recommendation is available to the public, to the members, and is now ready for your consideration. The House of E.D.s. House of Commonwealth.

[01:07:27] Delicate for Prince William, Doug Henson. Thank you, Mr. Speaker. Mr. Speaker, House Bill 215 deals with voter registration, list maintenance, third-party data exchanges. The governor's amendment, as recommended by Department of Elections, adds clarifying language to the provisions of the bill that do not apply to data sharing agreements that are already in effect as required by law.

[01:07:51] So, Mr. Speaker, this governor's amendment is technical in nature, and I move that we accept the governor's amendment. Shall the bill be amended in accordance with the recommendation of the governor?

[01:08:12] Close roll. Ayes. 63, no's 36. Ayes, 63, no's 36. The governor's recommendation is agreed to. Over on page 10, next bill before you is House Bill 229, House Bill 229, which is legislation relating to weapons possessing prohibited in a hospital that provides mental health services or developmental services penalty. The governor's recommendation is sent to the body as an amendment nature substitute, amendments available to the public, to the members, and is now before the body.

[01:08:45] Dr. Norfolk, Delga Hernandez. Thank you, Mr. Speaker. This was legislation to keep firearms and other dangerous weapons out of hospitals, and I believe this should be on the list to pass by for the day. And if it's not, I would renew that motion. It was already passed. It was not.

[01:09:01] It was not. Shall HB 229 be passed by for the day? All those in favor, say aye. All those opposed, no. HB 229 is passed by for the day. Continuing with counter on that same page, printed counter on page 10, we come next then to House Bill 234 relating to elections.

[01:09:19] general provisions, electoral board members to wear identification, civil penalty, the governor's recommendation, available to the public to the members, and is now before the body. The gentleman from Dinwiddie, Delegate Pope Adams. Thank you, Mr. Speaker. HB 234 requires acting electoral board members to wear standardized identification badges on election day.

[01:09:37] The governor's recommendation reduces the maximum civil penalty from $1,000 down to $250. Mr. Speaker, I move adoption of the governor's recommendation and urge my colleagues to accept by voting yes. The Delegate from Scott County, Delegate Kilgore. Mr. Speaker, speak to the bill.

[01:09:54] The Delegate has the rule. Mr. Speaker, I want to really give credit where credit is due. Now we're seeing some real affordability. We're dropping a fine from $1,000 to $2.50 for those people who are not wearing their badges on Election Day. Mr. Speaker, you know, these folks are doing a public service.

[01:10:13] We shouldn't be fining them for not wearing a badge. I urge a vote no on this amendment. Thank you, Mr. Speaker. Shall the bill be amended in the courts with the recommendation of the clerk we'll close the roll?

[01:10:37] Ayes, 64. Noes, 36. Ayes, 64. Noes, 36. The governor's recommendation is agreed to. On page 11, we come to House Bill 238 relating to labor and employment, payment of wages, minimum wage, and overtime wages, misclassification of workers' civil actions.

[01:10:55] Governor's recommendation named to substitute is available to the public, to the members, and is now before you. Thank you, Mr. Speaker. This bill provides that an employer that violates provisions relating to minimum wage, overtime wage provisions, the misclassification of workers, or the prevailing wage rate is subject to civil actions for the applicable remedies, damages, or other relief available in an action that brought pursuant to the civil action provisions currently available for the non-payment of wages.

[01:11:20] The governor's substitute removes provisions on retaliatory action by an employer, also removes references to lower tier additional subcontractors for construction, and reinstates the knowledge requirement for general contractor liability when a subcontractor does not pay its employees and other changes.

[01:11:37] Mr. Speaker, I move that the governor's recommendation, and I ask that the members vote yes. Shall the bill be amended in accordance with the recommendation of the governor?

[01:11:56] So close the roll. Ayes 64, nos 36. Ayes 64, nos 36. The governor's recommendation is agreed to. Over on page 12 of the printed calendar, The next bill before you is House Bill 281. House Bill 281 relates to the Virginia Residential Landlord and Tenant Act, noncompliance as defense to action for possession for nonpayment of rent.

[01:12:18] Governor's recommendation available to the public to the members is now before you. Deck for May, Albemarle, Delegate Cossum. Thank you, Mr. Speaker. House Bill 281 establishes warranty of habitability as an affirmative defense that tenants can raise even if they haven't paid their past due rents.

The governor's amendment is changing the effective date from January of 2027 to July, this July of 2026, which aligns it with Senate Bill 373, which has already been signed into law.

[01:12:44] I would move the governor's recommendation and ask members to vote yes. Shall the bill be amended in importance with the recommendation of the governor? Yeah, we need, that's me, that's me. We just, 312. I pulled the wrong.

[01:13:00] Yeah, yeah. Clerk, we'll close the roll. Ayes, 64, nos, 36. Ayes, 64, nos, 36. The governor's recommendation is agreed to.

[01:13:15] Apologize, Mr. Speaker. Bottom of page 12, House Bill 285, now before you, relates to establishing the Distributed Energy Resources Task Force Report, Sunset, governor's recommendation available to the public, to the members, and is now before you.

[01:13:31] Thank you, Mr. Speaker. Mr. Speaker, House Bill 285, as enrolled, establishing the Distributed Energy Resources Task Force, the governor's recommendations simply, instead of having the chair chosen by the members have the chief energy officer or his designee shall serve as the chair of the task force i hope uh we will i move adoption of the governor's uh recommendation shall the bill mr speaker the delegate from fall care county delegate weber thank you with the delegate yield for a question for the delegate yield i yield doug will you mr speaker i will ask the gentleman so as i

[01:14:07] understand the governor's amendments she makes the she adds a seat and then makes the chief energy the officer, the chair of the board, correct? Mr. Speaker, I'd answer the delegate, yes. That is correct. Thank you, Mr. Speaker. Speaking to the governor's amendment at the time.

[01:14:24] Delegate has the floor. Thank you, Mr. Speaker. Mr. Speaker, I actually much, very much prefer the bill as it left the House simply because when we set up these task forces or boards, a lot of times we let the board decide who's going to chair it, and the governor already has a seat on the board, and we have 15 members, which makes it an odd number, which means you have a tiebreaker.

[01:14:49] If you have an even number, you could have a tie. And Mr. Speaker, in my humble opinion as the voice of the legislature, I don't want to give the governor that much power to have the ability to appoint the chair to a board. I'd rather have the board appoint the chair.

[01:15:06] So I would urge the body to vote against the governor's recommendation. Thank you, Mr. Speaker. Shall the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll.

[01:15:27] Ayes 63, nos 36. Ayes 63, nos 36. The governor's recommendation is agreed to. Over on page 13, we come to House Bill 286. Different bills, same patron. This legislation relates to the Virginia National Guard, reports to the General Assembly, state militias, workgroup report.

[01:15:43] Governor's recommendation, amendment, nature, substitute, available to the public, to the members, is now before you. From Fairfax, that would help. Thank you, Mr. Speaker. The original bill, House Bill 286, established a framework for the Virginia National Guard in terms of reporting to the General Assembly, in terms of making sure non-interference in elections, and in terms of the deployment of Virginia National Guard into Virginia, as well as established a task force to examine notifications and how we do it.

[01:16:11] The governor made some technical recommendations to this, recommended by the adjutant general, and I move that we adopt the governor's recommendations. Shall the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll.

[01:16:33] Ayes. 64, noes. 36. Ayes. 64, noes. 36. The governor's recommendation is agreed to. next bill uh before you is uh bottom of page 14 the printed calendar following that way house bill 312. house bill 312 relates to motor vehicles emissions glass repair and replacement penalties governor's amendment governor's recommendation came to us as an amendment substitute is available to the public to the members and is now awaiting your consideration doug in chesapeake dougat carnegie thank you mr speaker house bill 312 relates to consumer protections and enforcement the governor's amendment does not change the bill's intent or protections nor does it affect or overlap with existing provisions under insurance law.

[01:17:12] The amendment instead clarifies enforcement. The enrolled bill applied all enforcement provisions under the Virginia Consumer Protection Act, while the governor's substitute specifies that enforcement will be carried out by the attorney general under that act. Mr. Speaker, I move adoption of the governor's recommendation and ask that the members vote yes.

[01:17:30] Shall the bill be amended in accordance with the recommendation of the governor? Close the roll. Ayes 72, noes 28.

[01:17:47] Ayes 72, noes 28. The governor's recommendation is agreed to. On page 15, we come to House Bill 318, which is legislation related to the Virginia Parole Board, powers and duties, juvenile offenders, parole procedures, and considerations. Governor's recommendation, amendment nature, substitutes before the body, available to the public, and is now awaiting your consideration.

[01:18:07] Dr. Phil Marlington, delegate hope. Thank you, Mr. Speaker. Members of the body, House Bill 318 did two things. One, it expanded the membership of the parole board, and the second thing it did is it provided a meaningful opportunity for people that committed crimes as a juvenile. to get an opportunity at parole.

[01:18:23] The governor amended the bill to strike the language about the expansion of the board. We agreed to work on that in the off-season, and she made some technical changes to the second provision stipulating that the board should not deny parole, saying that she'll give significant consideration.

[01:18:39] This doesn't tie the hands of the board. Mr. Speaker, I move the governor's recommendation, and I ask that the members vote yes. Shall the bill be amended in accordance with the recommendation of the governor? Clerk, we'll close the roll.

[01:19:01] Ayes 67, noes 33. Ayes 67, noes 33. The governor's recommendation is agreed to. Staying on page 15, we come to House Bill 320, which relates to live streaming while driving, prohibited penalty. The governor's recommendation available to the public, to the members now awaiting your consideration.

[01:19:20] The delegate from Fredericksburg, Delegate Cole. Thank you, Mr. Speaker. HB 320 creates a new prohibition on engaging with live streaming activity while driving, aimed at reducing distracted driving and improving roadway safety. The governor's amendment clarifies the scope of prohibited conduct to ensure the bill fully addresses unsafe behavior related to live streaming while driving.

[01:19:41] I move the House accept the governor's recommendation. Shall the bill be amended in accordance with the recommendation of the governor? So we'll close it up.

[01:19:57] Ayes 90, noes 10. Ayes 90, noes 10. The governor's recommendation is 22. House Bill 328, next up, is legislation relating to the Bureau of Insurance, Essential Health Benefits Benchmark Plan Selection.

[01:20:12] The governor's recommendation is available to the public and to the members. It is now before the body. Thank you, Mr. Speaker. Mr. Speaker, HB 328 was a recommendation of HERC and is the result of HERC's review over the last several years of numerous members' bills seeking to add certain benefits to Virginia's Essential Health Benefits Benchmark Plan.

[01:20:30] It directs the Bureau of Insurance to file Virginia's application with CMS to update our EHB Benchmark Plan for Plan Year 2028. But, Mr. Speaker, BOI discovered a timing issue since the federal regs require applications to be filed by May 26, 2026 for plan year 2028. The governor's amendment adds an emergency clause so that the bill becomes law in time to submit our application before that deadline.

[01:20:51] Without the amendment, these important health care benefits will be delayed another year. I move the governor's recommendation and ask that the members vote yes. Shall the bill be amended in accordance with the recommendation of the governor?

[01:21:11] Close row. Ayes 69, noes 31. Ayes 69, noes 31. The governor's recommendation is approved to. Over on page 16, we come to House Bill 329, which relates to the Virginia Residential Landlord and Tenant Act, Manufactured Home Lot Rental Act, retaliatory conduct prohibited.

[01:21:33] Government's recommendation is available to the public, to the members. It is now before the body. Thank you, Mr. Speaker. Mr. Speaker, HB 329 strengthens protections for tenants facing retaliation from their landlord. The governor's amendments for HB 329 makes technical amendments to strike unnecessary statute references and removes the delayed enactment so that it may be enacted this year to align with the issuance of DHCD landlord handbook in July.

[01:21:57] Mr. Speaker, I move that the House adopt the governor's amendments and ask that the body agree to them. Shall the bill be amended in accordance with the recommendation of the governor?

[01:22:15] Close vote. Ayes 70, nos 29. Ayes 70, nos 29. The governor's recommendation agreed to. House Bill 333 relates to public schools, programs, and courses of instruction, instruction on January 6th insurrection, requirements, and limitations.

[01:22:32] Governor's recommendation to amend nature substitutes available to the public, to the members that is now before the body. Thank you, Mr. Speaker. Mr. Speaker, House Bill 333, as originally enrolled, put guardrails on the teaching of the January 6th insurrection in our public schools. The governor's recommendations recognize that the breadth of lies about what is coming out of the Trump administration are much broader than that.

[01:22:53] And so instead of putting us into one way of thinking about modern history and how the Trump administration is trying to rewrite it, it actually puts it over the Board of Education so they can adopt the necessary guidelines to do that. I move we adopt the governor's recommendations. Shall the bill be amended in the course of the recommendation of the governor?

[01:23:20] Close the roll. Ayes, 64. Noes, 36. Ayes, 64. Noes, 36. the governor's recommendation is agreed to. House Bill 379 relates to a Virginia Residential Landlord and Tenant Act application, notice, deposit,

fee, and additional information. Governor's recommendation available to the public, to the members, it is now before the body. Delegate from Alexander, Delegate Mayor Pike. Thank you, Mr. Speaker. HB 379 enhances transparency requirements related to application fees, eligibility criteria, and the use of consumer data in the rental application process. The governor's amendment delays enactment from January 1 to July 1,

[01:23:59] 2027. I move the House, adopt the governor's recommendation and ask the members to vote yes. Shall the bill be amended in accordance with the recommendation of the governor?

[01:24:19] Close the roll. Ayes 65, nos 35. Ayes 65, nos 35. The governor's recommendation is agreed to. Next bill before you is over on page 19 of the printed calendar if you're following that way. That is House Bill 460. House Bill 460 relates to the Department of Small Business, Flyer Diversity, Employment Service Organization.

[01:24:43] Governor's recommendation of the nature substitute is available to the public. To the members is now before you. Delegate from Fairfax, Delegate Cohen. Thank you, Mr. Speaker. House Bill 460 was a technical fix to better align the code on ESO procurement. The governor's recommendation adds service-disabled, veteran-owned, and military-family-owned businesses to the code as well.

[01:25:02] I move the recommendation and ask that the body vote yes. Shall the bill be amended in accordance with the recommendation of the governor? Clerk, close the roll.

[01:25:22] Ayes. 88, no's none. House 88, no's none. Governor's recommendation agreed to. Over on page 20 of the printing calendar, we come to House Bill 484, which relates to health insurance, ethics and fairness in carrier business practices, downcoded claims, prior authorization, required contract provisions.

[01:25:43] Governor's recommendations are available to the public, to the members that are now before you. Delegate from Fairfax, Delegate Shen. Thank you, Mr. Speaker. Mr. Speaker, House Bill 484 was the bill about insurance carrier downcoding practices. The enrolled version of the bill passed out of this body on March 2nd on a vote of 98 to zero, but there were some technical differences between what we passed on the Senate side or the Senate version that we passed, Senate Bill 164.

[01:26:07] One change replaces references to remittance advice to ensure the broader term explanation of payment is used consistently to minimize confusion. Another change simply inserts the word programming instead of the word program. And the final change clarifies the expectation that certain information be included in the provider contract for consistency across carriers and for accessibility as well.

[01:26:28] So, Mr. Speaker, I would move adoption of the governor's recommendations. Shall the bill be amended in accordance with the recommendation of the governor?

[01:26:45] Close the roll. Ayes, 99, noes, 1. Ayes, 99, noes, 1. The governor's recommendation is agreed to. Next up is House Bill 505, House Bill 505, which relates to members of the local governing body continuing a personal interest in certain transactions.

[01:27:04] Governor's recommendation is available to the public, to the members. It is now before the body. Delegate from Falk here, Delegate McCullough. Thank you, Mr. Speaker. HB 505 resolves some local conflict of interest concerns by extending the cooling off period for municipal employees voting on their

former employers' interests and add protections for communities whose municipal leaders have alleged felony offenses.

[01:27:22] It passed this body with bipartisan support. The governor's amendments prevent pay from being withheld in the case of suspension and includes an emergency clause to bring faster relief to those communities. So I move the governor's recommendation, and I ask that the members vote yes. Shall the bill be amended in accordance with the recommendation of the governor?

[01:27:44] Club will close the roll. Ayes. 69, noes 31. Ayes 69, noes 31. The governor's recommendation is agreed to. Turning to page 22, next before you, bill before you, is House Bill 547, which relates to private companies providing public transportation services, employee protection report.

[01:28:07] Governor's recommendation is available to the public, to the members, and is now before the body. Thank you, Mr. Speaker. Mr. Speaker, House Bill 547, as originally passed, established protections for public transit workers from having their jobs outsourced and losing their collective bargaining rights in it.

[01:28:23] What this bill does, what the governor's recommendations do is delay enactment of the bill, adds a reenactment to the original portion of the bill, but keeps a working group that we had to establish the regulations just to give a little bit more time to figure out how to do this correctly. I move adoption of the governor's recommendations. Should a bill be amended in accordance with the recommendation of the governor? Close the row. Ayes 64, nos 36. Ayes 64, nos 36.

[01:28:59] The governor's recommendation is agreed to. We come next to House Bill 553, which relates to Department of Corrections, language services for offenders, governor's recommendation available to public, to the members, and is now before the body. Delegate from James City County, Delegate Anderson. Thank you, Mr. Speaker. HB 553 will codify already existing Department of Corrections gold standard, court-approved policies guaranteeing translation services to non-English-speaking individuals behind bars.

[01:29:24] The Governor's Amendment, recommended by the Department of Corrections, simply removes the prohibition of internet and machine translations and replaces the prohibition with the requirement that the use of such translations must be reviewed by a qualified translation professional The governor supports this bill to ensure individuals with limited English language proficiency can access DOC facilities, services, programs, and activities.

[01:29:47] This amendment also allows flexibility for the department to acquire future technology services. With that, Mr. Speaker, I move adoption of the governor's recommendation and ask the body to vote yes. Shall the bill be amended in accordance with the recommendation of the governor?

[01:30:13] Close the roll. Ayes, 68, noes, 31. Ayes, 68, noes, 31. The governor's recommendation is agreed to. Over on page 23, we come to House Bill 569, which relates to prevailing wage rate for public works contracts, definition of civil penalty.

[01:30:29] The governor's recommendation, amendment nature substitute, is available to the public, to the members, and is now before you. Delegate from Virginia Beach, Delegate Fagans. Thank you, Mr. Speaker. House Bill 569 establishes a Virginia-based prevailing wage system for state-funded public work projects. The governor's recommendation extends wage surveys to every three years, removes penalties and payroll submission requirements, and directs a workgroup to study future reporting systems.

[01:30:52] I move the governor's recommendation and ask that the members vote yes. Shall the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll.

[01:31:11] Ayes 63, nos 36. Ayes 63, nos 36. The governor's recommendation is agreed to. Same page. We now come to House Bill 614, legislation directed to the Department of Education to comprehensive study of the history and social studies standards of learning and curriculum framework.

[01:31:30] Report legislation, governor's recommendation, excuse me, is offered as amendment nature substitute. It's available to the public, to the members. It is now before you. Thank you, Mr. Speaker. House Bill 614, as it passed, ensured that there was a review of our history and social science standards by the department.

[01:31:50] What the governor's amendments do is shift it to the board at the regularly scheduled review of our SOLs. I hope it would be the pleasure of the body to accept the governor's recommendations. Shall the bill be amended in accordance with the recommendation of the governor?

[01:32:13] Close the row. Ayes. 64, noes. 33. Ayes. 64, noes. 33. The governor's recommendation is agreed to. Over on page 24, we come to House Bill 627, which relates to covenants not to compete health care professionals, excuse me, civil penalty, governor's recommendation available to the public, to the members, and it is now before you.

[01:32:35] The delegate from Alexander, delegate hearing. Thank you, Mr. Speaker. The clerk explained what the bill does. It deals with non-compete agreements for health care professionals. Mr. Speaker, I would like to sever the governor's recommendation, one from number two. And, Mr. Speaker, first, with Governor's Recommendation No. 1, it makes the communication between the health care professional easier.

[01:33:00] They're allowed to provide information that they're leaving and their contact information that they're still practicing medicine. Mr. Speaker, I move that we adopt Recommendation No. 1. Shall the Governor's Amendment No. 1 to HB 627 be agreed to?

[01:33:24] Close roll. Ayes, 96. Nose, 3. Ayes 96, no's 3. The Governor's Amendment No. 1 is agreed to, to HB 627.

[01:33:41] Delicate Alexander, judge of the hearing. Thank you, Mr. Speaker. Mr. Speaker, I move that we pass by Amendment No. 2. Shall Amendment No. 2 be passed by? All those in favor, say aye. All those opposed, no. Amendment No. 2 is passed by to HB 627. Mr. Clerk. Continuing with today's calendar, we've now come to House Bill 630, which is legislation relating to elections, conduct of election, rank choice voting, locally elected offices report. Governor's recommendation amendment nature substitute is available to the public to the members now before you. The delegate from Albemarle, Delegate Carlson. Thank you, Mr. Speaker. House Bill 630 expanded the option of using ranked

[01:34:19] choice voting to include all local governing bodies and also made that option permanent and codified and clarified how ranked choice voting should occur. The governor's substitutes provide technical changes to how the results should be posted online while still maintaining voter privacy and then how risk audits should occur.

[01:34:36] I would move the governor's recommendations and ask that the members vote yes. Shall the bill be amended in the courts with the recommendation of the governor? Clerk will close the row.

[01:34:52] Ayes. 65, noes, 35. Ayes, 65, noes, 35. The governor's recommendation is 3-2. House Bill 636 is next. It relates to prohibiting an employer seeking wage or salary history of prospective employees.

[01:35:09] Wager salary range transparency, cause of action, governor's recommendation amendment substitutes available to the public to the members. It is now before you. Delegate from Prince William, Delegate Martinato. Thank you, Mr. Speaker. Mr. Speaker, HB 636, as originally passed the General Assembly, helps to address wage transparency requirements for employers posting jobs.

[01:35:28] The governor's recommendation makes three key changes. The first is that they do retain the personal right of action but remove the class action language and replace it with an AG enforcement mechanism. Second, there is a requirement that any updates to post and include wage salary information be updated to the original posting platform.

[01:35:50] And third, the tiered penalties section that we had included has been shifted. And now there is a one, the first offense is $1,000 and up to $5,000 for any subsequent offenses. Mr. Speaker, I move the governor's recommendations and ask that the members vote yes. Shall the bill be amended in accordance with the recommendation of the governor?

[01:36:12] Clerk, close the roll. Ayes 66, noes 33. Ayes 66, noes 33. The governor's recommendation is agreed to. Over on page 25, we come to House Bill 640, which relates to elections, challenges to voters, or voters' registration.

[01:36:30] The governor's recommendation is available to the public, to the members, and it is now before the body. Doug from Fairfax, Delegate Kreese. Thank you, Mr. Speaker. House Bill 640 removes the authority for voter-initiated same-day voter registration challenges at the polling place, moving the process into the courts.

[01:36:46] The governor's recommendation to the bill removes the 60-day prohibition on contesting a voter's registration before an election and clarifies that the court has discretion on the 15-day notice prescribed in the bill for voters whose registration is objected to. Given the bill vastly strengthens this process by requiring a court petition, the amendment removing the 60-day period is to allow for any legitimate objections to be reviewed by the court.

[01:37:10] So, Mr. Speaker, I move adoption of the governor's recommendation. Shall the bill be amended in accordance with the recommendations of the governor? Clerk will close the roll. Ayes. 64, noes. 36. 64, noes. 36. The delegate from Alexandria, Delegate Herring.

[01:37:33] Thank you, Mr. Speaker. Mr. Speaker, I move that the House stand in recess until 1.35. Delegate from Alexandria, Delegate Herring moves that the House stand in recess until 1.35 p.m. All those in favor say aye. All those opposed, no. The House is in recess until 1.35 p.m.

[01:37:49] House will come to order. Mr. Clerk.

[01:46:20] Ms. Speaker, members of the House, when last we met, we were on page 27, and we were getting ready to take up, and now we are ready to take up House Bill 670. HB 670 relates to labor and employment provisions, application of law, protection of employees, definition of employer.

[01:46:38] The governor's recommendation is available to the public, to the members, and is now before the body for its consideration. That's from Prince William, Doug Amarnata. Thank you, Mr. Speaker. Mr.

Speaker, the original bill, HB 670, helped to expand the definition of employees and covered employees to ensure that teachers could receive unearned compensation.

[01:46:58] This bill, the amendment by the governor's recommendation is to impose a reenactment clause so that we can address some sovereign immunity issues post-session. I ask that I move the governor's recommendation.

[01:47:13] I ask that the members vote yes. Should a bill be amended in accordance with the recommendation of the governor?

[01:47:29] Clerk will close the roll. Ayes 63, noes 35. Ayes 63, noes 35. The governor's recommendation is agreed to. Over on page 28 of the printing calendar, we come next to House Bill 678. House Bill 678 relates to the Virginia Residential Landlord and Tenant Act, terms and conditions of rental agreement, notice of rent increase.

[01:47:51] Governor's recommendation is available to the public. To the members, it is now before you. Dr. Prince William, Doug Amaldonado. Thank you, Mr. Speaker. Mr. Speaker, the original bill is passed to General Assembly, HB 678, provides additional extensions for notice of renewal for rentals by tenants.

[01:48:08] The recommendation by the governor is to impose a delayed effective date of 7-1-2027 in order to coincide with the DHCD handbook on housing. Mr. Speaker, I move the governor's recommendation. I ask that the members vote yes. Shall the governor's recommendation be adopted?

[01:48:25] Should the bill be amended in accordance with the recommendation of the governor? I'm sorry. It was hilarious. Ayes 69, noes 27.

[01:48:41] Ayes 69, noes 27. The governor's recommendation is agreed to. Bottom of page 28, House Bill 702 relates to local law enforcement agencies, firearm give back or buy back programs, legislation, excuse me, the governor's recommendation available to the public, to the members who is now before you.

[01:48:58] Delegate from Fredericksburg, Delegate Cole. Thank you, Mr. Speaker. HB 702 requires local law enforcement agencies to establish a firearm return program, allowing individuals to voluntarily relinquish firearms in a safe and structured manner. The amendment simply changes the term buyback to sellback throughout the bill to more accurately reflect the individuals are voluntarily returning firearms through a structured local program.

[01:49:24] I'd ask the House to accept the governor's recommendations. Shall the bill be amended in the courts with the recommendation of the governor? Close the roll. Ayes.

[01:49:39] 63, noes 36. I-63, no's 36. The governor's recommendation is agreed to. House Bill 711 relates to a local regulation of solar facilities, special exceptions. Governor's recommendation is available to the public, to the members, and it's now before the body. Dr. Alexander, Dr. Herring.

[01:49:56] Thank you, Mr. Speaker. The governor's recommendations to House Bill 711 includes the word laws and the part of the bill that provides that nothing will relieve a project from complying with the state and federal permits or regulations. Additionally, Mr. Speaker, the governor's recommendation does update the definition of agrivolatics to be consistent with the definitions contained in House Bill 508, which was approved by the governor on April 6th.

[01:50:25] I move that the bill be, the governor's recommendations, sorry, be adopted. Should the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll.

[01:50:45] Ayes, 64, noes, 35. Ayes, 64, noes, 35, the governor's recommendation. Over on page 30, House Bill's recommendation from the Governor, we come next to House Bill 773. House Bill 773 relates to elections, absentee voting, cure process legislation, excuse me, the Governor's recommendation is available to the public, to the members.

[01:51:06] It's now before the body. The delegate from Hampton, Delegate Thorne. Thank you, Mr. Speaker. Mr. Speaker, HB773 basically moves the curing process delayed effective date from the Friday after the election to the Monday after the election, and our enactment date was originally September 1, 2026, and the governor's amendment moved it to January 1, 2027.

[01:51:34] Mr. Speaker, I move we adopt the governor's recommendation and vote yes. Shall a bill be amended in accordance with the recommendation of the governor? Kirk will close the roll.

[01:51:52] Ayes 63, noes 36. Ayes 63, noes 36. The governor's recommendation is agreed to. Continuing over on page 31, we come to House Bill 774, different bills, same patron. This legislation relates to elections, absentee, and provisional ballots, a cure process.

[01:52:12] Governor's recommendation is an amendment nature substitute, which is available to the public, to the members, and is now before you. Delegate from Hampton. Delegate Thornton. Thank you, Mr. Speaker. Mr. Speaker, HB774 basically moves the provisional curing processing date from the Friday after the election to the Monday following the election.

[01:52:33] And our enactment date was originally September 1st, 2026. We moved it to January 1st, 2027 by the governor's amendment. I move, Mr. Speaker, that we adopt the governor's recommendation and vote yes. Shall the bill be amended in accordance with the recommendation of the governor?

[01:52:51] Clerk, close the roll. Ayes 64, noes 36. Ayes 64, noes 36.

[01:53:06] The governor's recommendation is agreed to. House Bill 796 relates to professions and occupations, adjustment of fees by regulatory boards, recovery of disciplinary and monitoring costs. Governor's recommendation amendment nature of substitutes available to the public, to the members, and is now before the body. Declan Chesapeake, Delegate Hayes.

[01:53:23] Thank you, Mr. Speaker. The enroll bill, HB 796, focused primarily on allowing recovery of disciplinary and monitoring cost from violators. The governor's amendments keep the cost recovery provision, but significantly expands the bill by having fee regulation reforms, limiting excess balances, as well as providing transparency and reporting requirements. To speak, I move the recommendation and ask that the members vote yes.

[01:53:52] Shall the bill be amended in accordance with the recommendation of the governor? Close the roll. Ayes 67, noes 33.

[01:54:08] I-67, no's 33. The governor's recommendation is agreed to. House Bill 820 would direct the Department of Housing and Community Development in collaboration with the Virginia Housing Development Authority to create a two-year pilot program that would provide loan origination and servicing activities for mixed-income housing report.

[01:54:24] Governor's recommendation is available to the public, to the body, and is awaiting your consideration. Delegate from Fairfax, Delegate Helmer. Thank you, Mr. Speaker. Mr. Speaker, the bill, as originally enrolled, does exactly as the clerk explained it, establishing this mixed income facility.

[01:54:40] All the governor's recommendations do is to not mandate that it comes out of the Virginia Housing Trust Fund. I move adoption of the governor's recommendations. Shall the bill be amended in accordance with the recommendations of the governor? Clerk will close the row.

[01:55:06] Ayes 88, noes 11. Ayes 88, noes 11. The governor's recommendation is agreed to. Over on page 32, if you're following along on the print calendar, we come next to House Bill 834, which relates to the Virginia Residential Landlord and Tenant Act, Fire or Casualty Damage, Termination by Landlord.

[01:55:23] The governor's recommendation is available to the public, to the members, and is now before you. Delegate from Arlington, Delegate McClure. Thank you, Mr. Speaker. Mr. Speaker, HB 834 makes it easier for tenants to adjust and cope after the aftermath of a fire or casualty damage incident. The governor's amendments for HB 834 simply removes the delayed enactment and the enrolled bill.

[01:55:41] Mr. Speaker, I move that the House adopt the governor's amendment and ask that the body agree to them. Shall the bill be amended in accordance with the recommendation of the governor?

[01:55:58] Clerk will close the roll. Ayes, 66, noes, 33. Ayes, 66, noes, 33. The recommendation of the governor is agreed to. House Bill 848, also relates to the Virginia Residential Landlord and Tenant Act, this time a material noncompliance by landlord rent escrow relief.

[01:56:16] Governor's recommendation is available to the members now before you. From Richmond City, Doug and Cuthers. Thank you, Mr. Speaker. HB 848 improves access to the legal system by removing the requirement that tenants be current on rent in order to file an affirmative action against the landlord for failing to meet safe housing standards.

[01:56:34] The bill does not change existing requirements that tenants pay rent into escrow upon filing an assertion and during the pendency of the action. The governor's amendment removes the delayed enactment clause, allowing the bill to go into effect on July 1st. Mr. Speaker, I move adoption of the governor's recommendation.

[01:56:52] Should the bill be amended in accordance with the recommendation of the governor? The clerk will close the roll. Ayes 67, noes 33.

[01:57:08] Ayes 67, noes 33, the governor's recommendation is amended. That's well, 857, this legislation relates to home electronic incarceration program. The governor's recommendation is available to the public and to the members, it is now before you. Delegate from Richmond City again, Delegate Cousins.

[01:57:24] Thank you, Mr. Speaker. As enrolled, HB 857 creates a statutory presumption, but not a requirement, that pregnant, postpartum, and nursing women in Virginia's jails be placed on home electronic incarceration when possible. Importantly, this presumption is rebuttable if authorities determine that the woman is a threat to herself, a threat to others, or if she poses a flight risk.

[01:57:44] The Governor made a technical amendment that reiterates the ineligibility criteria that's included in the pretrial section of the bill. Mr. Speaker, I move adoption of the Governor's recommendation. Should the bill be amended in accordance with the recommendation of the Governor?

[01:58:07] Ayes 89, nos 11. Ayes 89, nos 11. The governor's recommendation is agreed to. Top of page 33, we come to House Bill 871, which relates to storage of firearms in residence where a minor or person prohibited from possessing a firearm is present.

[01:58:24] Penalty of governor's recommendation available to the public and members that is now before you. From York County, Delegate Downey. Thank you, Mr. Speaker. House Bill 871, as enrolled, relates to safe storage, requiring safe storage of firearms in the presence of minors and folks legally prohibited of possessing a firearm.

[01:58:45] The governor's amendments allow for additional safe storage method involving gun locking devices. The governor's amendments also strengthen the penalty of failing to secure the firearms safely from Class 4 to Class 2 misdemeanor. I move that we adopt the governor's recommendations.

[01:59:03] I ask that the members to vote yes. Delegate from Campbell County, Delegate's there. Mr. Speaker, rising to speak to the bill and the amendment. The delegate has the floor. Thank you, Mr. Speaker. Not in the margins, not in some gray area where lawyers can argue both sides. This goes straight to the heart of District of Columbia v. Heller.

[01:59:20] In Heller, the Supreme Court made it clear. Government cannot require that firearms be kept in a condition that makes them inoperable for immediate self-defense. Because a firearm you cannot access in an emergency is a firearm that you cannot use to protect you or your family.

[01:59:37] The right to keep and bear arms includes the right to use them for self-defense in the home. That's not my opinion. That's the holding of the court. And here's the practical reality. If we pass this bill, it will be challenged.

[01:59:53] It will be overturned. And the people of Virginia will be left holding the bill for a law we knew from the beginning couldn't stand. We can debate policy all day, but we don't get to ignore the Constitution when it's inconvenient. I urge a no vote and veto the underlying bill.

[02:00:12] Shall the bill be amended in accordance with the recommendation of the governor? Close the roll.

[02:00:34] Ayes 64, noes 36. Ayes 64, noes 36. The governor's recommendation is agreed to. Next, we come to House Bill 872, which relates to possession of a portable electric device in district or circuit court.

[02:00:50] Governor's recommendation is available to the members now before the body. The delegate from Richmond City, delegate Cousins. Thank you, Mr. Speaker. I move that we pass by the Governor's recommendation. Without objection, HB 872 has passed by for today.

[02:01:08] Accordingly, Ms. Speaker, over on page 34, next bill we come to is House Bill 888. HB 888 relates to a minimum off-street parking requirements in certain areas.

[02:01:24] Governor's recommendation available to the public members is now before you. Doug from Fairfax, Delegate Shin. Thank you, Mr. Speaker. Mr. Speaker, House Bill 888 helps to address the supply side of our housing affordability crisis by lowering minimum requirements for off-street parking in designated areas where the residents there might have public transit alternatives.

[02:01:42] The governor proposed nine amendments to House Bill 888 and 1, 2, and 9 don't substantially alter the bill. They actually restore the language to Virginia Code Section 15.2, 2279, that the bill proposed to strike initially.

[02:01:57] But it's consistent with the bill's intents, which is from the beginning, to provide targeted parking reforms as opposed to trying to broadly displace local authority. Amendments 3 and 4 narrow the geographic scope of the bill, while still meaningfully reducing parking minimums in transit corridors.

[02:02:15] And 5 and 6, refine the definition of qualifying public transportation in mass transit. We authorize the Department of Rail and Public Transportation to identify other high-capacity transit services, which allows us to be more flexible with that definition. And then lastly, 7 and 8 are technical clarifications so the administrative review process can exist for developers seeking parking relief on projects outside half a mile of a qualifying transit station.

[02:02:42] Mr. Speaker, those were a lot of amendments, but I would move adoption of the Governor's recommendation. Should a bill be amended in accordance with the recommendation of the governor? Ayes 62, noes 38. Ayes 62, noes 38. The governor's recommendation is agreed to.

[02:03:05] On page 35 we come to House Bill 891, different bills, same patron. This one relates to a sighting of battery storage, battery energy storage projects, commercial solar or photovoltaic generation facilities permitted accessory use.

[02:03:21] The governor's recommendation is to the public and to the members and is before you now. Thank you Mr. Speaker, House Bill 891 allows for the addition of battery energy storage on solar sites that have already approved conditional use permits and it also preserves existing financial and community benefit terms while also maintaining public safety and compliance requirements to the highest standard.

[02:03:45] The bill passed out of this body on February 5th on a vote of 70 to 28 and the governor substitute strikes lines 21 to 22 of the enrolled version which will require battery energy storage developers to go to the locality and at least attempt to negotiate a siting agreement, even if it does not require an agreement to be reached by both parties.

[02:04:03] The substitute also includes new language on lines 33 to 34 that restricts each new battery facility to be just 100% of the nameplate generating capacity of the associated solar facility. And Mr. Speaker, I would move adoption of the governor's recommendations.

[02:04:20] The delegate from Buckingham, Delegate Garrett. Thank you, Mr. Speaker. Speaking of the bill. Yeah, I can have the floor. Mr. Speaker, this is the bait and switch, right? I mean, the delegate's own words were that it requires the battery storage people to go to the localities and at least attempt. But these special use permits were granted by our members of our board of supervisors, duly elected by the citizens of their localities, based on one project, a solar project.

[02:04:44] And now we are, by law, forcing another project, a battery storage project, down their throats. It subverts the directly stated will of the people. It removes the voice of the elected representatives, and it puts into our communities risks that had not previously been contemplated by those who are tasked with protecting them.

[02:05:01] And so, Mr. Speaker, I hadn't anticipated standing and speaking to this bill today. Hence, my words are perhaps jumbled and not as organized as they could be. But this is a horribly bad precedent to set, and it shows that we are not responsive to our citizens and our constituents, but instead to those with the money, the developers of solar and battery storage.

[02:05:19] I would urge a no vote on this bill. Delegate from Fairfax, Delegate Shein. Thank you, Mr. Speaker. Mr. Speaker, speaking to my own bill really briefly, that this isn't a bait and switch at all, actually, the recommendations and the amendments that have come down from the governor, again, on a bill that this body passed 70 to 28 back in February, it just clarifies that the locality and the developer have to at least try to have a conversation about the additional battery storage they're putting in.

[02:05:47] And it also, I think that to the credit of the governor, it also says that if the solar siding a solar site was permitted for x number of whatever the generating the nameplate for generation was it also says the battery storage now additionally added to that co-located there also has to meet that standard and so mr speaker there's no bait and switch here and i would again reiterate that we would move adoption of the governor's recommendations shall the bill be amended in accordance with the recommendation of governor mr speaker i have a motion clerk will

[02:06:23] close the roll ayes 65 noes 35 i 65 noes 35 the governor's recommendations agreed to Continuing with, Mr. Speaker, do you have a point of order? If it's not a point of order, you can't make a motion, you're out of order.

[02:06:39] Point of order. What's your point of order, sir? I would like to move that we reconsider a vote so that a member can change his vote. Having voted on the prevailing side? Yes, Your Honor. Yes. On which bill? Which bill? Yes, Mr. Speaker, on House Bill 871, I voted on the prevailing side.

[02:06:55] Having voted on the prevailing side, I move that we reconsider that vote so a member can change their vote. Delegate moves that, having voted on the prevailing side by which we adopted the governor's amendment on HB 871, that we reconsider that vote.

[02:07:13] All those in favor say aye. All those opposed, no. The motion is agreed to. Shall the bill be amended in accordance with the recommendation of the governor? That's HB 871.

[02:07:41] Close the row. Ayes 63, nos 37. Ayes 63, nos 37. The governor's amendment is agreed to. Continuing over on page 13, continuing with the calendar, we come to House Bill 892.

[02:08:01] House Bill 892 relates to electric utilities, integrated resource plans, state corporation commission to investigate electric load forecasts. Governor's recommendation available to the public, to the members, is now before you. Thank you, Mr. Speaker. Mr. Speaker, House Bill 892 directs the SEC to initiate a proceeding to review load forecasting practices by utilities, which includes distribution cooperatives.

[02:08:25] The Governor's amendment strikes the precedent of limiting access to confidential information, but still gets at the cooperative's concerns by explicitly protecting location-specific information. The amendment also addresses concerns from the OAG and the SEC about language provided by the electric cooperatives in the second enactment that prevents interveners from having access to any load forecasting data and so we would allow for interveners to have access to that data and Mr. Speaker I would move adoption of the governor's recommendations.

[02:08:52] So the bill be amended in the course of the recommendation of the governor. Clerk will close the row. Ayes 63, noes 33.

[02:09:07] Ayes 63, noes 33. The governor's recommendation is agreed. Next up is House Bill 909. House Bill 909, relation to elections, administration, certain activities of conduct prohibited at polling places applicable to locations for absentee voting in person possession of firearm with 100 feet of location used for certain voting related and election related activities. Penalty, the governor's recommendation is available to the public, to the members, and before you now.

[02:09:31] Thank you, Mr. Speaker. House Bill 909 is a bill that helps to make Virginia more secure for voters, for poll workers, for volunteers. And it does this by extending the prohibition of a firearm from 40

feet to 100 feet from the entrance of a polling place. The bill passed out of this body on February 12th. And in the interest of keeping the language of the bill consistent throughout. The governor's amendment adds clarification that firearms are prohibited from additional sensitive voting related locations, but only while those locations are being used as such, similar to the polling places provision. Mr. Speaker, I move adoption of the governor's recommendation.

[02:10:06] Delegate from Scott County, Delegate Kilgore. Thank you, Mr. Speaker. Speak to the amendment. Delegate has the floor. Mr. Speaker, ladies and gentlemen of the House, what we're doing here, especially in rural Virginia you're setting up folks to be convicted of some crime when they're inadvertently going to a polling place they've been hunting a lot of folks have the guns in their vehicles and things like that they pull into and most of our voting places in rural Virginia would be at our schools they'll pull into the schools schools closed they have their gun in the back of their pickup truck on their gun rack so you know this is something we're doing here that I think

[02:10:44] I think, you know, inadvertently we're making a lot of law-abiding citizens criminals. I hope that we will vote no on this amendment. Shall the bill be amended in accordance with the recommendation of the governor? Close the roll.

[02:11:09] Ayes, 64, noes, 36. Ayes, 64, noes, 36. The governor's recommendation is agreed to. Over on page 36, those bills are, I predict, too, already have been adopted. Therefore, on page 37, we come to House Bill 964, which relates to voter registration, restoration of political rights upon release from incarceration, certain educations.

[02:11:32] Governor's recommendation amendment substitute is available to the members. It's now before you. Delegate from Newport News, Delegate Price. Thank you, Mr. Speaker. House Bill 964 is the enabling legislation for the proposed constitutional amendment on voting rights. And the governor's changes are mostly technical in nature, but help streamline the processes by which people will get their rights restored.

[02:11:57] It does remove a mandate that the restoration would be done prior to release, but we do have the governor and her administration's commitment that we will continue to work to make sure that that process is streamlined and also efficient.

[02:12:14] So I would move that we would accept the governor's recommendation to House Bill 964. Shall the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll.

[02:12:35] Excuse me. Ayes 64, nos 34. Ayes 64, nos 34. The governor's recommendation is agreed to. House Bill 969 would direct the Department of Criminal Justice Services to convene a workgroup to develop policy and legislative recommendations to establish the Virginia Gun Violence Prevention Center.

[02:12:52] Governor's recommendation to amend the nature substitute is available to the public, to the members, and now before the body. Back from Newport News, Delegate Price. Thank you, Mr. Speaker. House Bill 969 is establishing a work group that will present policy recommendations towards establishing the Virginia Gun Violence Prevention Center.

[02:13:14] The governor's amendment added that all of the people that are outlined in the bill that would be added to the work group must have prior experience in gun violence prevention, which is also a great catch. So I appreciate the governor's amendment and ask that the body would support the governor's recommendation for House Bill 969.

[02:13:37] Shall the bill be amended in accordance with the recommendation of the governor? Clerk, close the roll.

[02:13:53] Ayes. 64, noes. 35. Ayes. 64, noes. 35. The governor's recommendation is agreed to. Continuing with the calendar, we turn next to page 39. Page 39, we come to House Bill 1011. Bill 10-11, this legislation relates to compost and other products containing organic soil amendments infrastructure, Department of Environmental Quality tax policy options for reforming the litter tax study expanded civil penalty.

[02:14:19] Governors, five recommendations are available to the public, to the members here, and are now awaiting your consideration. Thank you, Mr. Speaker. House Bill 10-11 allows localities to establish ordinances for food diversion or composting strategies.

[02:14:34] Mr. Speaker, I'd like to sever the amendments and take up amendments 1, 4, and 5 together, and then amendments 2 and 3. And so for amendments 1, 4, and 5, I'd like to take these up first. These would remove the study by DEQ and also exempt facilities from composting if the permitted composting facility cannot or will not accept the waste.

[02:14:57] Mr. Speaker, I move that we adopt the governor's amendments 1, 4, and 5 and ask the members to vote yes. Sure. Amendments 1, 4, and 5 to HB 1011 be amended in accordance with the recommendation of the governor. Clerk will close the roll.

[02:15:22] Ayes 66, noes 34. Ayes 66, noes 34. Amendments 1, 4, and 5 to HB 1011 are agreed to. The delegate from Fairfax, Delegate Tran. Thank you, Mr. Speaker. I would like to now take up amendments 2 and 3 and ask that we pass those by for the day and ask the members to agree.

[02:15:43] All those in favor of passing by amendments 2 and 3 to HB 1011, say aye. Opposed, no. Amendments 2 and 3 to HB 1011 are bye for the day. Continuing on that same page, 39, we come to the same patron, different bill. This is House Bill 1015. It relates to possession or transportation of firearms, firearms, ammunition, stun weapons, or explosives or carrying of concealed weapons by persons convicted of a misdead or hate crime prohibited.

[02:16:08] Governor's recommendation, amendment and agent substitute, is available to the public, to the amendmenters, and is now awaiting your consideration. Thank you, Mr. Speaker. As the clerk described, this bill prohibits people who are convicted of misdemeanor assault or assault and battery that also qualifies as a hate crime from possessing a firearm, ammunition or explosives.

[02:16:27] The governor's recommendation changes the penalty to three years, and I would like to move the governor's recommendation and ask that the members vote yes. Should the bill be amended and of course with the recommendation of the governor? Clerk will close the roll.

[02:16:46] Ayes 64, noes 36. Ayes 64, noes 36. The governor's recommendation is agreed to. Over on page 40, we come to House Bill 1030. House Bill 1030 relates to discretionary parole criteria guidelines. The governor's recommendation is available to the public, to the members, as is now before you.

[02:17:03] Dave from Rockingham, Doug at Wilt. Thank you, Mr. Speaker, ladies and gentlemen of the House. If we recall, House Bill 1030 is the bill that creates criteria for the parole board board when considering the suitability of those that are already eligible for parole and the governor's amendment simply extends the the time out a year to give the parole board at their request Mr. Speaker to give them

time to implement these changes and so I move the governor's amendment and ask the body to vote yes. Shall the bill be amended in accordance with the recommendation of

[02:17:41] Governor. Close the road. Ayes 100, noes 0. Ayes 100, noes 0. The Governor's recommendation is agreed to.

[02:17:57] House Bill 1037, middle of page 40, is legislation relating to the Board of Education, instructional materials on climate change and environmental literacy, model policies and procedures for selection. Governor's recommendation amendment substitute is available to the public. To the members is now before you. Senator from Richmond City, Dr. Carr.

[02:18:14] Thank you Mr. Speaker. HB 1037 tasks the Board of Education with ensuring that schools have access to scientifically accurate peer-reviewed educational materials on environmental literacy, climate change, and its effect on humans and resources. The governor's amendment turns the bill into a Section 1 bill and aligns it with the Board of Education's regularly scheduled science standards of learning review process.

[02:18:38] I move the governor's amendment, and I ask the members to vote yes. Shall the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll.

[02:18:54] Ayes. 64, noes. 36. Ayes, 64, noes. 36. Governor's recommendation is agreed to. Next bill before you, over on page 41, is House Bill 1046. It relates to the Virginia Public Procurement Act, additional public works contract requirements report.

[02:19:11] Governor's recommendation is available to the members here in the chamber, to the public at large, and is now awaiting your consideration. Dr. Richard Buscelli, Doug, a call. Thank you, Mr. Speaker. HB 1046 increases transparency on the use of independent contractors on public works contracts and ensures that private contractors working on public works are the favorite offenders of important labor laws.

[02:19:35] The governor's amendment exempts transportation construction from provisions of the bill and adjusts some of the definitions contained in the bill. I move the governor's amendment, and I ask the members to vote yes. Should a bill be amended in court for the recommendation of the governor? Clerk will close the roll.

[02:19:58] Ayes, 65. Noes, 35. Ayes, 65. Noes, 35. The governor's recommendation is agreed to. Next, we come to House Bill 1065, which would direct certain electric utilities to undertake comprehensive assessments and establish pilot programs related to surplus interconnection service report.

[02:20:15] The governor's recommendation is available to the public, to the members, and now before you. Del from Norfolk. Delgert Hernandez. Thank you, Mr. Speaker. This legislation seeks to help Virginia add more power to our grid quickly and affordably. The governor's amendments are technical in nature. Just clarifying that the pilot program that's contemplated under the law is up to 500.

[02:20:33] megawatts for dominion and up to 100 megawatts for apco so i would move the governor's recommendation and ask that we vote yes shall the bill be amended in accordance with the recommendation of the governor close row ayes 65 nos 35 65 nos 35 the governor's recommendation is agreed to over on page 42 we come to house bill 1100 a new bill same patron this legislation relates to wage

garnishments treasurer's liens for unpaid taxes and charges again the governor's recommendation available to the public of the members that are before you.

[02:21:13] Delegate from Norfolk, Delegate Hernandez. Thank you, Mr. Speaker. This is a consumer protection bill, and under this bill, treasurer's liens are capped at 25% as they apply to wages, so people are going to be able to keep more of the wages that they earn. The one exception in this bill is when someone is trying to flee the jurisdiction in which they reside, and the governor's amendments tweaks that component of the bill, just clarifies that a court is the one that has to make that determination.

[02:21:37] So I would move the governor's recommendation and ask that we vote yes. Shall the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll.

[02:21:53] Ayes 73, noes 25. Ayes 73, noes 25. The governor's recommendation is agreed to. House Bill 1165 would require the Board of Education to amend its regulations relating to the qualification of division superintendents.

[02:22:09] The governor's recommendation is an amendment in nature of substitute available to the public. To the members, it is now before you. Delegate from Spotsylvania, Delegate Cole. Mr. Speaker, House Bill 1165 relates to the qualifications of public school division superintendents. It amends board of education qualifications for division superintendents applying for licensure under option four and requires candidates who have completed five years of successful educational experience in a public or accredited non-public school, including at least two years of full-time pre-K to 12 teaching experience and two years of an administration or supervision.

[02:22:45] Mr. Speaker, the governor's recommendation adds a provision with option four, whereby the Board of Education, upon review of the application, could waive the teaching experience requirement. Mr. Speaker, I move the governor's recommendation, and I ask that the members vote yes.

[02:23:02] Shall the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll. Ayes 63, noes 35. Ayes 63, noes 35. The governor's recommendation is agreed to.

[02:23:19] Over on page 43, bill before you next is House Bill 1182, which relates to health insurance coverage for contraceptive drugs and devices. Governor's recommendations to HB 1182 are available to the public, to the members that are now before you. Doug from Prince William, Doug and Thomas. Thank you, Mr. Speaker.

[02:23:35] Mr. Speaker, House Bill 1182 makes Virginia more affordable for families by removing the cost burdens around contraception. Governor's recommendation is technical in nature and allows insurance companies to actually execute the intent of the bill. I move the governor's recommendation and ask that the members vote yes. Shall the bill be amended in accordance with the recommendation of the governor?

[02:24:03] Clerk will close the roll. Ayes 64, nos 35. Ayes 64, nos 35. The governor's recommendation is agreed to. Over on page 44, we come to House Bill 1207.

[02:24:19] It relates to a paid family medical leave insurance program, notice requirements, civil action. The governor's amendment in the nature of the substitute is available to the public, it's available to the members here, and it is now before you. Thank you, Mr. Speaker.

[02:24:35] Mr. Speaker, House Bill 1207 establishes an essential and widely supported paid family medical leave bill, a program ensuring 3.4 million additional Virginians can access up to 12 weeks of leave. This

legislation reflects a clear mandate and our shared commitment to supporting families when they need it most.

[02:24:57] Mr. Speaker, paid leave makes life more affordable for Virginia families. No longer will hardworking Virginians be forced to choose between a paycheck and caring for their loved one. With today's vote, the Commonwealth is poised to become the 15th state in the nation and the first in the South to enact this benefit.

[02:25:19] The governor's amendment and the amendments in the form of a substitute expands program, transparency and accountability. Mr. Speaker, I move the governor's recommendations and ask members of the body to vote yes to the substitute. The delegate from Roanoke, Delegate McNamara.

[02:25:39] Thank you, Mr. Speaker. Might I ask the patron a question on the substitute? Will the delegate yield for a question? I yield, Mr. Speaker. Delegate will yield. Thank you, Mr. Speaker. The question I have, and I don't want to be real technical, but I sort of am.

[02:25:59] Lines 513 to 514, it says payroll contributions to the fund shall be authorized in order to finance the payment of benefits under an administration of the paid family medical leave insurance program.

[02:26:17] The question I would have, are these payroll contributions voluntary or are they required? That'll be from Prince William, delegate. Mr. Speaker, I will say that once again, we are excited to respond to the 84% of Virginians who are excited to have a benefit that will ensure that when they need leave the most, that they will be able to keep a roof over their head, food on their table, and access to quality care.

[02:26:47] Mr. Speaker, this program is an opportunity for hardworking Virginians in partnership with businesses and advocates alike, as well as impacted families, to come together and ensure that both employees and employers will be able to ensure that this leave is accessible, but more importantly, that it will support Virginia's economy.

[02:27:13] Delegate from Roanoke, Delegate McNamara. Thank you, Mr. Speaker. And I'd like to thank you very much for answering my question. I think not. Mr. Speaker, may I speak to the bill, please? The delegate has the floor. Thank you, Mr. Speaker. So payroll contribution to this fund shall be authorized. They are not voluntary. They are a forced contribution to this fund. If I back up about 20 or 25 lines on line 495, it says this fund is created as part of the state treasury. So, Mr. Speaker,

[02:27:47] I say we have this session, we've been able to kill a lot of pretty rough taxes. We've killed taxes on mattresses and killed taxes on car repairs and killed taxes on DoorDash deliveries, all that were sponsored by the Democrats in the House.

[02:28:10] And we hear that, in fact, Democrats aren't raising your taxes. They're making life more affordable. Well, Mr. Speaker, if I look to Google and I look for the definition of tax, The definition of a tax, according to Google, is a compulsory contribution to state revenue levied by the government on workers' income.

[02:28:37] That is exactly what this is. So call it as you may. You can call it a great program. It's a wonderful program. It's a very broad, broad program. It is in other states, not quite as broad as it is in our state as it's about to be.

[02:28:52] But let's also remind everybody that this is a tax, a huge tax, the largest tax since the creation of Social Security in the Commonwealth of Virginia. This tax, to put it in context, will generate, based on the fiscal reporting of the Commonwealth of Virginia, roughly half the total cost that people are paying in for their car tax across the state.

[02:29:14] This is a huge tax. I urge you to vote against the governor's amendment, and I urge the governor to veto this. Lacking both of those actions, please, for the sake of goodness, please stop saying that you aren't making life more affordable.

[02:29:33] You are making life way, way less affordable by adding these huge taxes. Thank you, Mr. Speaker. So the bill will be amended in accordance with the recommendation of the governor.

[02:29:52] Ayes 64, noes 36. Ayes 64, noes 36. The governor's recommendation is agreed to.

[02:30:14] House Bill 1222, 1263, by for the day. House Bill 1270 has been adopted. Therefore, top of page 46, we come to House Bill 1273.

[02:30:31] It is legislation relating to transportation network companies, requirements, civil penalties, governor's recommendation available to the public, to the members, and is now before you. Delegate from Norfolk, Delegate Glass. - Gratitude, Mr. Speaker. This House Bill 12-1273 establishes new safety, verification and accountability requirements for transportation network companies and their drivers, including identity verification, background check standards, and restrictions on account sharing, while imposing a civil penalty for violations and directing those funds to the DMV.

[02:31:08] The governor's recommendation removes the reenactment clause placed on there by the patron, I move the governor's recommendation and ask that the members vote yes. Should it be amended in accordance with the recommendation of the governor?

[02:31:29] Clerk will close the roll. Ayes, 89, nos, 9. Ayes, 89, nos, 9. The governor's recommendation is agreed to. House Bill 1279, now before you, relates to affordable housing, religious organizations, and other non-profit tax exempt properties.

[02:31:52] Governor's recommendation available to the public and to the members is now before the body. The delegate from Fredericksburg, Delegate Cole. Thank you, Mr. Speaker. God bless you. Thank you. HB 1279 establishes a by-right approval process for affordable housing development on land owned by religious organizations and certain non-profit entities.

[02:32:14] The governor's recommendation refines implementation standards. It makes technical and implementation-focused improvements to the bill, ensuring clarity around height, taxation, density, and environmental review while maintaining the core-by-right framework. Mr. Speaker, I hope it will be the privilege of the body to accept the governor's amendments.

[02:32:31] Shall the bill be amended in accordance with the recommendation of the governor? Clerk, close the roll. Ayes 62, nos 38.

[02:32:48] Ayes 62, nos 38. The governor's recommendation is agreed to. On page 47, we come to House Bill 1377, which would establish a task force to examine higher education at the Virginia Military Institute. God's recommendation to Member Nature Substitute is able to the members of the public is now before you.

[02:33:04] Delegate from Fairfax, Delegate Hill. Thank you, Mr. Speaker. Mr. Speaker, House Bill 1377 is engrossed by this body, formed a task force to examine instances of sexual assault, dedication to the lost cause in the Confederacy at VMI.

[02:33:21] What the governor's recommendations do is move that responsibility from the task force to the Board of Visitors. We've had substantial changes to that Board of Visitors. It does hold them accountable to reporting to this body on their progress in addressing the 2021 report with showing instances of racism, sexual assault at VMI.

[02:33:45] And so I think we are moving in the right direction. I think we will be able to hold the board accountable for those recommendations. And I hope it is the will of the body to accept the governor's recommendations. Shall the bill be amended in accordance with the recommendation of the governor?

[02:34:08] Close the roll. Ayes 69, nos 31. Ayes 69, nos 31. The governor's recommendation is agreed to. Over on page 48, 1385, 1392, abide for the day.

[02:34:24] Therefore, the bill before you next is House Bill 1393. House Bill 1393 relates to electric utilities, pilot program for energy assistance and weatherization for certain individuals, Recovery for certain costs, revised tariffs, securitization of certain costs, prevailing wage rate. The governor's recommendation is available to the public, to the members, and is waiting your attention.

[02:34:43] Doug from Morocco County, Delegate LeVere Bowling. Thank you, Mr. Speaker. HB 1393 continues and strengthens our energy assistance programs and efforts for Virginians who need it the most. It takes an important step toward fairness in our energy system by directing that certain large infrastructure and capacity costs be borne by the largest energy users, And it makes several updates to utility policy, including adjustments to rate structures, authorizing securitization of fuel costs, and promoting the use of prevailing wages and skilled apprenticeship programs to strengthen our local energy workforce.

[02:35:15] Mr. Speaker, I would like to move that we sever amendments 1 through 6, amendment 8 and 11, and take those up together, and then amendments 7, 9, and 10 together. What are we going to do?

[02:35:31] Without objection, 1, 6, 8, and 11 are severed, taken out of order, and 7, 9, and 10 afterwards. So what do you want to do with 1 through 6, 8, 1 through 6, 8, and 11? Thank you for repeating what I just said.

[02:35:48] 1 through 6, 8, and 11. Mr. Speaker, I would like to, on the board, we have the governor's amendments 7, 9, and 10 to take up first. You want to start with those? Okay. Yes. Yes, sir. Amendment 7 replaces the specific rate-making components of the bill with the permanent policy that the SEC is to ensure that data center customers have no adverse effects on rates of any other customers.

[02:36:14] Amendment 9 deletes the fifth enactment in the bill on bring your own generation. And then Amendment 10 reinforces that the SEC has complete discretion on improving securitization. And, Mr. Speaker, I move that we adopt the governor's recommendations of 7, 9, and 10, and I ask that members vote yes.

[02:36:30] All those in favor of adopting the amendments 7, 9, and 10 to HB 1393? Clerk will open the roll. Shall the bills be amended? And of course, with the recommendation of the governor, amendments 7, 9, and 10. Clerk will close the roll.

[02:36:57] Ayes 70, nos 29. Ayes 70, nos 29. The governor's recommendations as to HB 1393, amendments 7, 9, and 10 are agreed to. Delegate from Henrico, Delegate Olivia Bolin. Thank you, Mr. Speaker. I would like to move to pass by the remaining amendments, 1 through 6, 8 and 11, and have them go by for the day.

[02:37:17] All those in favor of taking by amendments 1 through 6, 8 and 11, Mr. Clerk of HB 1393 shall say aye. All those opposed, those amendments are taken by for the day. Continuing with calendar over on page 50, page 50, we come to House Bill 1441, which relates to law enforcement agencies' agreements with federal authority for immigration enforcement requirements.

[02:37:45] Governor's recommendation available to members of the public is now before you. Then from Arlington, David Lopez. Thank you, Mr. Speaker. This bill prohibits any state or local law enforcement agency from maintaining, renewing, or entering into any federal immigration agreement unless such agreements contain certain provisions. The enrolled bill specifies that provisions shall not apply to the transfer of custody of an adult convicted of certain violent felonies from a state, local, or regional correctional facility upon such correctional facilities receipt of a federal immigration detainer.

[02:38:12] It also, finally, addresses the need for judicial warrants when we're dealing with state and local police and the federal immigration process and not administrative warrants. The governor's amendment simply removes the requirement that such an adult who is subject of such an immigration detainer have been convicted of certain violent felonies.

[02:38:30] I move, Mr. Speaker, that we move the governor's recommendation and ask that the members vote yes. Shall the bill be amended in accordance with the recommendation of the governor? Clerk will close the roll.

[02:38:52] Ayes 64, noes 36. I-64, no. 36. The Governor's recommendation is agreed to. House Bill 1444, different bills, same patron. This one relates to a Virginia Clean Energy Innovation Bank established report. Governor's recommendation is available to the public, to the members, and is now before you.

[02:39:09] Senator from Arlington, Debra Lopez. Thank you, Mr. Speaker. The enrolled bill creates the Virginia Clean Energy Innovation Bank to finance qualified projects through grants, loans, credit enhancements, and other financing mechanisms and creates an advisory board consisting of non-legislative citizen members and ex-officio members to oversee the bank and provide recommendations related to the bank and its effectiveness. The governor's amendments, one, establish the Virginia Clean Energy Innovation Bank fund with related sub-funds that consist of funds used to implement the bill's provisions. Two, adds an additional non-legislative citizen member appointed by the governor to the advisory board. And three, makes technical corrections. Mr. Speaker,

[02:39:46] I move the governor's recommendations and ask that the members vote yes. Should the bill be amended in accordance with the recommendation of the governor? Close the roll.

[02:40:05] Ayes 65, noes 34. Ayes 65, noes 34. The governor's recommendation is agreed to. Over on page 51, we come to House Bill 1450, which relates to health insurance, claims, experience, information. Governor's recommendation available to the members, to the public, now before you.

[02:40:22] Delegate for Middlesex, Delegate Hodges. Thank you, Mr. Speaker. Ladies and gentlemen of House, House Bill 1450 deals with pharmacy benefit managers reporting data back to a self-insured employer. We pass this body unanimously. The governor's recommendation is to place a reenactment clause on the legislation, and I would ask the body to accept the governor's recommendation.

[02:40:48] Shall the governor's recommendation, shall the bill be amended in accordance with the governor's recommendation? Ayes 100, noes 0.

[02:41:07] Ayes 100, noes 0. The governor's recommendation is agreed to. Over on page 52, we come to House Bill 1457, which relates to vehicle weight limits, violations, owner of a commercial motor vehicle hauling coal. Governor's recommendations are available to the public and to the members that are now before you.

[02:41:25] Then from Tazewell County, Delegate Moorfield. Thank you, Mr. Speaker. Mr. Speaker, members of the House, the Governor's recommendations for House Bill 1457 includes a lessee in addition to the owner of a coal truck as the party responsible for an overweight truck and not the driver. I ask that the House accept the Governor's recommendation.

[02:41:47] Shall the bill be amended in accordance with the recommendation of the Governor? Truck will close, bro. Ayes 98, noes 0.

[02:42:03] Ayes 98, noes 0. The Governor's recommendation is agreed to. Pantultimately, we come to House Bill 1524, which relates to carrying assault firearms in the public areas prohibited. Penalty, the governor's recommendation and amendment nature substitute available to the members of the public is now before the body. The delegate from Fairfax, Delegate McGuire.

[02:42:20] Thank you, Mr. Speaker. HB 1524 is a legislation to prohibit the open carry of certain firearms in public spaces. The governor's amendments preserve the legislation's purpose, but to prohibit the open carry of assault firearms by aligning the definition with other firearm legislation, and exemptions are maintained for law enforcement, military, ROTC, and those engaged in lawful hunting or recreation.

[02:42:41] I move the governor's recommendation and ask that the members vote yes. Shall the bill be a minute? And of course, I'm sorry, the delegate from Richmond County, Delegate Kent. Thank you, Mr. Speaker. I'd like to speak to the governor's recommendation. The delegate has the floor. The underlying concerns with this bill remain and they have not changed.

[02:42:59] This legislation will criminalize law-abiding citizens, Virginians, including off-duty law enforcement officers, while not addressing those who actually commit crimes. We've had extensive debate on the issue, and it will not deter criminals in one location over another.

[02:43:17] Shall not be infringed. It is a constitutional right, not a suggestion. At the end of the day, Mr. Speaker, this amendment does not fix the underlying problems. It simply repackages them. It was unconstitutional last month. It's unconstitutional today, and it will be unconstitutional until it fails.

[02:43:37] I urge you to vote no. Shall the bill be amended in the courts with the recommendation of the governor? Close the row.

[02:44:01] Ayes 59, nos 40. Ayes 59, nos 40. The governor's recommendation is agreed. And lastly, over on page 53, last bill in this category of House Bill's recommendation to the governor is House Bill 1525.

[02:44:17] It relates to possession or transportation of certain firearms by certain persons. Governor's recommendation in the form of a nature substitute is available to the members of the public. It is now before you. Delegate from Fairfax, Delegate McGuire. Thank you, Mr. Speaker.

[02:44:33] HB 1525 is a legislation to raise the age to purchase certain firearms to 21 and to close a background check loophole for private sellers. The governor's amendments, including an emergency

clause, immediately require the Virginia State Police to restart background checks on all private firearm sales. This closes the Lynchburg loophole created when a circuit court ruling invalidated Virginia's background check law based on age restriction differences in state and federal law. I would encourage you if you do support universal background checks for firearm sales in the state to support this bill and therefore I move the governor's recommendation and I ask that the members vote yes.

[02:45:12] Delicate from Buckingham. Delicate Garrett. Thank you Mr. Speaker. Speaking to the bill. Mr. Speaker, I could have done this with a lot of different bills today, but I chose this one. I will tell you that I'm going to dog-ear this floor speech and put it in the category of I told you so, so that we can get back to this.

[02:45:31] Amongst many bills that fly in the face of the Bruin ruling, 1525 not only flies in the face of the ruling of the United States Supreme Court, it also flies in the face of the ruling of the 24th Circuit of the Virginia Court. In fact, in the 24th Circuit of the Virginia Court, Judge Yates wrote, in reference to this very act, the court finds itself left with one option at this time, and that is to strike the statute entirely for the reasons set forth herein.

[02:45:55] The court grants the plaintiff's request for permanent injunctive relief in joining the administration enforcement and imposition of Virginia Code Section 18.2-308.2:5. Now here's the problem. What this bill does is directs the Virginia State Police to enforce something that a court in the Commonwealth of Virginia has said very clearly they cannot enforce.

[02:46:16] That notwithstanding, the Fifth Federal Circuit has already ruled on this very issue in favor of the folks on this side of the building, saying that you cannot do this. In fact, currently, the United States Supreme Court is considering a certiorari on that, but I would argue they need not do so, because if you read Bruin, its clear meaning is that the interpretation of the Second Amendment should be consistent with that at the time of which it was founded.

[02:46:38] So notwithstanding men and women of this country who have bravely donned the uniform of the the United States who we asked to carry actual weapons of war at age 18, we can look back to the age of the young men and women who fought to free America some 250 years ago. I understand exactly what's about to happen, and I understand that you all campaigned on — some people campaigned on affordability.

[02:47:00] This is going to come forward. It is going to be challenged. It is going to fail. I am going to say I told you so, not with glee, but with regret, because we will have have wasted lots of people's time and millions of the hard-working taxpayers' dollars in the Commonwealth of Virginia defending what is, Mr. Speaker, in fact, clearly, not only according to federal court, but state court, indefensible.

[02:47:24] So the bill will be amended in accordance with the recommendation of the governor. Clerk will close the roll.

[02:47:47] Ayes 63, nos 36. Ayes 63, nos 36. Governor's recommendation is agreed to. Mr. Speaker, that completes that section of the calendar. House bills was recommended by the governor. Then we have another one which we'll be moving forward to.

[02:48:03] Next category would be Senate bills vetoed by the governor as well as Senate bills with recommendations. The Senate has not communicated those yet because I think they're still working through their calendar. The Delegate from Alexander, Delegate Herring. Mr. Speaker, I move that the House stand in recess until 3.30.

[02:48:22] Delegate from Alexander, Delegate Herring moves that the House stand in recess until 3.30. All those in favor say aye. All those opposed, no. The House is in recess until 3.30. Thank you.

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